IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD
COURT - 2

ITEM No303

CP(CAA)/15(AHM)2023
in
CA(CAA)/10(AHM)2023

Proceedings under Section 230-232 of Co. Act, 2013

IN THE MATTER OF:

Madhurkamal (Thaltej) Complex Pvt. Ltd. **.....Applicant**
Madhav (Thaltej) Complex Pvt. Ltd
Mandar (Thaltej) Complex Pvt. Ltd **.....Respondent**
Vyom Realty Pvt. Ltd
Shushna Complex Pvt. Ltd.
Viraj Complex Pvt. Ltd.
Shreekala Infrastructure Pvt. Ltd.
Siddhivinayk Securities Pvt. Ltd
Shaligram Investments Pvt. Ltd
Ganeshsagar Infrastructure Pvt. Ltd.

Order delivered on 11/07/2023

Coram:

Mr. Shammi Khan, Hon'ble Member(J)
Mr. Ajai Das Mehrotra, Hon'ble Member(T)

ORDER

The case is fixed for pronouncement of order.

The order is pronounced in open Court vide separate sheet.

-Sd-

AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

-Sd-

SHAMMI KHAN
MEMBER (JUDICIAL)

NATIONAL COMPANY LAW TRIBUNAL
AHMEDABAD BENCH
(COURT NO. II)

CP (CAA) 15/AHM/2023

IN

CA (CAA) 10/AHM/2023

(In the matter of Sections 230- 232 of the Companies Act, 2013 read with other applicable provisions of the Companies Act, 2013)

In the matter of Scheme of Amalgamation

OF

Madhurkamal (Thaltej) Complex Private Limited
(Petitioner Company No. 1/ Transferor Company No. 1)
AND

Madhav (Thaltej) Complex Private Limited
(Petitioner Company No. 2/ Transferor Company No. 2)

AND
Mandar (Thaltej) Complex Private Limited
(Petitioner Company No. 3/ Transferor Company No. 3)

AND

Vyom Realty Private Limited
(Petitioner Company No. 4/ Transferor Company No.4)
AND

Shushna Complex Private Limited
(Petitioner Company No. 5/ Transferor Company No. 5)

AND

Viraj Complex Private Limited
(Petitioner Company No. 6/ Transferor Company No. 6)

AND

Shreekala Infrastructure Private Limited
(Petitioner Company No. 7/ Transferor Company No. 7)

AND

Siddhivinayak Securities Private Limited
(Petitioner Company No. 8/ Transferor Company No. 8)

AND

Shaligram Investments Private Limited
(Petitioner Company No. 9/ Transferor Company No. 9)

WITH

Ganeshsagar Infrastructure Private Limited
(Petitioner Company No. 10/ Transferee Company)

And
Their Respective Shareholders and Creditors

Order Pronounced on: 11/07/2023

Coram:
MR. SHAMMI KHAN
HON'BLE MEMBER (JUDICIAL)

MR. AJAI DAS MEHROTRA,
HON'BLE MEMBER (TECHNICAL)

MEMO OF PARTIES

In the matter of:

Madhurkamal (Thaltej) Complex Private Limited
(CIN: U45201GJ2002PTC041054)
Having its Registered Office at:
Ganesh Corporate House, 100 ft.
Hebatpur - Thaltej Road, Near Sola Bridge,
Off S.G. Highway, Ahmedabad- 380 054

… Petitioner Company No. 1/
Transferor Company No. 1

Madhav (Thaltej) Complex Private Limited
(CIN: U45201GJ2002PTC041056)
Having its Registered Office at:
Ganesh Corporate House, 100 ft.
Hebatpur - Thaltej Road, Near Sola Bridge,
Off S.G. Highway, Ahmedabad- 380 054

… Petitioner Company No. 2/
Transferor Company No. 2

Mandar (Thaltej) Complex Private Limited
(CIN: U45201GJ2002PTC041059)
Having its Registered Office at:
Ganesh Corporate House, 100 ft.
Hebatpur - Thaltej Road, Near Sola Bridge,
Off S.G. Highway, Ahmedabad- 380 054

… Petitioner Company No. 3/
Transferor Company No. 3

Vyom Realty Private Limited
(CIN: U45201GJ2002PTC041138)
Having its Registered Office at:
Ganesh Corporate House, 100 ft.
Hebatpur - Thaltej Road, Near Sola Bridge,
Off S.G. Highway, Ahmedabad- 380 054

… Petitioner Company No. 4/

Transferor Company No. 4

Shushna Complex Private Limited
(CIN: U45201GJ2002PTC041150)
Having its Registered Office at:
Ganesh Corporate House, 100 ft.
Hebatpur - Thaltej Road, Near Sola Bridge,
Off S.G. Highway, Ahmedabad- 380 054

… Petitioner Company No. 5/
Transferor Company No. 5

Viraj Complex Private Limited
(CIN: U45201GJ2002PTC041151)
Having its Registered Office at:
Ganesh Corporate House, 100 ft.
Hebatpur - Thaltej Road, Near Sola Bridge,
Off S.G. Highway, Ahmedabad- 380 054

… Petitioner Company No.6/
Transferor Company No. 6

Shreekala Infrastructure Private Limited
(CIN: U45201GJ2002PTC041357)
Having its Registered Office at:
30, Maniratnam Row House,
Part-2, P & T Colony Road,
Vasna, Ahmedabad- 380 054

… Petitioner Company No. 7/
Transferor Company No. 7

Siddhivinayak Securities Private Limited
(CIN: U71110GJ1995PTC027045)
Having its Registered Office at:
Ganesh Corporate House, 100 ft.
Hebatpur - Thaltej Road, Near Sola Bridge,
Off S.G. Highway, Ahmedabad- 380 054

… Petitioner Company No. 8/
Transferor Company No. 8

Shaligram Investments Private Limited
(CIN: U21019GJ1995PTC027044)
Having its Registered Office at:
Ganesh Corporate House, 100 ft.
Hebatpur - Thaltej Road, Near Sola Bridge,

Off S.G. Highway, Ahmedabad- 380 054

… Petitioner Company No. 9/
Transferor Company No. 9

Ganeshsagar Infrastructure Private Limited
(CIN: U45201GJ2002PTC041356)
Having its Registered Office at:
Ganesh Corporate House, 100 ft.
Hebatpur - Thaltej Road, Near Sola Bridge,
Off S.G. Highway, Ahmedabad- 380 054

… Petitioner Company No. 10/
Transferee Company No. 10

APPERANCE

For the Petitioners : Mr. Sandeep Singhi, Advocate
For the Income Tax : Ms. Pankti Shah, Advocate
For the RD : Mr. B. Rama Ambedkar, Asst. Director

O R D E R

1. This joint petition has been filed by the Petitioner Companies under Sections 230-232 read with other applicable provisions of the Companies Act, 2013 (for brevity 'the Act') seeking sanction of the scheme of amalgamation (hereinafter called the “Scheme”) of the Madhurkamal (Thaltej) Complex Private Limited (for brevity “Transferor Company No. 1”), Madhav (Thaltej) Complex Private Limited (for brevity “Transferor Company No. 2), Mandar (Thaltej) Complex Private Limited (for brevity “Transferor Company No.3), Vyom Realty Private Limited (for brevity “Transferor Company No. 4”), Shushna Complex Private Limited (for brevity “Transferor Company No. 5”), Viraj Complex Private Limited (for brevity

"Transferor Company No. 6"), Shreekala Infrastructure Private Limited (for brevity "Transferor Company No. 7"), Siddhivinayak Securities Private Limited (for brevity "Transferor Company No. 8"), Shaligram Investments Private Limited (for brevity "Transferor Company No. 9") with Ganeshsagar Infrastructure Private Limited (for brevity "**Transferee Company**") with effect from the 01/04/2022 being the Appointed Date as mentioned in the Scheme.

2. From the records, it is seen that the first motion application seeking directions for dispensation of the meeting of the equity shareholders, secured, unsecured creditors and preference shareholders of all the Petitioner Companies was allowed vide order dated 02.03.2023.

3. The 2nd motion joint petition was filed on 15.03.2023 and admitted vide order dated 30.03.2023, issuing Notices to the concerned statutory authorities and also directing publication in the newspapers 'Financial Express' in English and Gujarati, in Ahmedabad Edition. The Petitioner Companies have filed respective compliance affidavits.

4. The Regional Director, North Western Region, MCA has filed a common report on 09.05.2023 along with the report of RoC, Ahmedabad. They have sought the following directions:

i) The transferee company is to undertake the compliance of section 232(3)(i) of the Companies Act, 2013 and to pay fees accordingly.

ii) As per clause (e) of the report the transferee company has submitted a letter dated 22.03.2023, in reply to the RD's letter dated 14.03.2023, and provided the details of Auditors' remark during the last three years, and their respective justification as given in directors report in terms of Section 134 of the Companies Act, 2013, in respect of the Transferor Company No. 4, 5 and the Transferee Company. In this regard, the Tribunal may be pleased to direct the Transferor Company No. 4, 5 and the Transferee Company to place on record all the relevant facts of the matter.

iii) As per paragraph 2(f) of the report, the Transferee Company vide letter dated 04.05.2023 has informed that the Petitioner Companies have not undertaken projects for the construction of residential and commercial complexes, hence, have not taken any approval from RERA.

iv) The Petitioner Companies to pay legal fees/cost to the Central Government.

v) The Transferor Company No. 8 is engaged in the business to act as share and stock brokers and to act as a member of Regional or other Stock Exchange or National Stock Exchange or over The Counter

Exchange of India, etc. In this regard, to direct the Transferor Company No. 8 may be asked to take necessary NOC from the respective Stock Exchange.

vi) All the transferor companies to preserve its books of accounts, papers and records and shall not dispose them without prior permission of the Central Govt. as per the provisions of the section 239 of the Companies Act, 2013.

vii) All the transferor companies to ensure statutory compliance of all applicable laws and also on sanctioning of the scheme, the transferor companies shall not be absolved from any of its statutory liability, in any manner.

viii) The petitioner companies to pay necessary stamp duty on transfer of property/assets to the respective authorities before implementation of the scheme.

5. The Official Liquidator, attached with the Hon'ble High Court of Gujarat has filed separate observations for all transferor companies on 20.04.2023, seeking directions as follows:

i) All the transferor companies to preserve their books of accounts, papers and records and shall not dispose of them without prior permission of the Central Govt. as per the provisions of section 239 of the Companies Act, 2013.

ii) All the transferor companies to ensure statutory compliance with all applicable laws and also on sanctioning of the scheme, the transferor companies shall not be absolved from any of its statutory liability, in any manner.

iii) The transferee company to pay such costs and expenses to the office of the official liquidator for all the transferor companies or any such amount as may be considered appropriate by this Bench.

iv) The Petitioner Companies to lodge a certified copy of the order with the scheme, with the concerned superintendent of Stamps for the purpose of adjudication of stamp duty payable, if any.

6. The Income Tax Department filed report for all the Petitioner Companies, which are as follows:

i) For the Transferor Company No. 1 –

a) The outstanding demand pending for the Transferor Company No. 1 is as under:

Sr. No.	Name of the Assessee	Demand	A.Y.
1	Madhurkamal (Thaltej) Complex Private Limited	36,684/-	2006-07

b) No other proceedings are pending against the Transferor Company No. 1.

ii) For the Transferor Company No. 2 -

a) The outstanding demand pending for the Transferor Company No. 2 is as under:

Sr. No.	Name of the Assessee	Demand	A.Y.
1	Madhav (Thaltej) Complex Private Limited	30,070/-	2006-07

b) No other proceedings are pending against the Transferor Company No. 2.

iii) There are no outstanding demands and no proceedings are pending for the Transferor Company No. 3, 4, 5, 6, 8 & 9 .

iv) The outstanding demand of Rs.200/- is pending for the Transferor Company No. 7. No proceedings are pending against it.

v) For the Transferee Company –

a) The outstanding demand pending for the Transferee Company is as under:

Sr. No.	Name of the Assessee	Demand (in Rs.)	A.Y.
1	Ganeshsagar Infrastructure Private Limited	26,690/- 75,796/-	2019-20 2005-06

b) No proceeding are pending against the Transferee Company.

7. The Petitioner Companies have filed a common affidavit in reply to the observations of the Regional Director and ROC. The submission made in above stated replies are as follows:

i) For differential fees, the Transferee Company gave undertaking for compliance of section 232(3)(i) of the Companies Act, 2013.

ii) As per the Paragraph 2(e) of the report, the Transferor Company No. 4, 5 and the Transferee Company have already explained, and the contents of the said replies are also forming part of the paragraph under reply.

iii) As per paragraph 2(f) of the report, it is submitted that the question of obtaining any permission from RERA does not arise, as none of the Petitioner Companies has any incomplete or any ongoing real estate project.

iv) It is submitted that the Transferor Company No. 8 is not a registered stock broker or member of any of the stock exchanges or Over The Counter Exchange of India. In such circumstances, the question of obtaining any permission of the stock exchanges does not arise.

v) The Petitioner Companies gave undertaking to pay legal fees, as per the direction by the Tribunal.

vi) The Transferee Company undertakes to preserve the books of accounts, papers and records of the Petitioner Company No. 1 to 9

and the same would not be disposed of without prior permission of the Central Government under the provisions of Section 239 of the Act.

vii) It is submitted that the scheme nowhere seeks to absolve any of the Petitioner Companies from any statutory liabilities.

viii) The Transferee Company shall make necessary application, within the prescribed time, to the concerned stamp authority for payment of stamp duty, if any, once the Scheme is sanctioned by the Tribunal and the same is made effective.

8. The Petitioner Companies have filed a common affidavit in reply to the observations of the Official Liquidator. The submission made in above stated replies are as follows:

(i) All the Petitioner Companies gave undertaking to preserve the books of accounts, papers and records of all the Petitioner Companies and not to dispose of the same without prior permission of the Central Govt. as per the provisions of Section 239 of the Companies Act, 2013.

(ii) All the Petitioner Companies submitted that scheme nowhere proposes absolving the Petitioner Companies from any of its statutory liabilities, if any.

(iii) The Transferee Company undertakes to pay the cost to the Official Liquidator as may be directed by the Bench.

(iv) The Transferee Company undertakes to lodge a certified copy of the order along with the scheme with the Superintendents of Stamps for Adjudication of Stamp duty payable.

9. The Petitioner Companies have filed a common affidavit in reply to the observations of the Income Tax Department on 12.05.2023. The submission made in above stated replies are as follows:

i) The demand of Rs.36,684/- against the Transferor Company No. 1 has already been paid by the said company. A copy of the challan of payment is annexed with this reply.

ii) The demand of Rs.30,070/- against the Transferor Company No. 2 has already been paid by the said company. A copy of the challan of payment is annexed with this reply.

iii) It is submitted that there are demand of Rs.26,690/- for the assessment year 2019-20 and demand of Rs.75,796/- for the assessment year 2005-06 pending against the Transferee Company. It is submitted that the Transferee Company has already paid the requisite amount in respect to the assessment year 2019-20 and 2005-06. A copy of the challan payment of the said amount is annexed with the reply.

10. All the Petitioner Companies have filed their respective Audited Financial Statements for the year of 2021-22 and unaudited Financial Statements for the quarter ended 31.12.2022 and copy of the same are annexed with the petition.

11. As recorded in the order dated 15.05.2023, Learned Counsel Mr. Samit Bhatt appeared for the Petitioner Companies. Regarding the reply from the Income Tax Department, he stated that only Rs.75,796/- relating to the Transferee Company, i.e., Ganeshsagar Infrastructure Pvt. Ltd. is pending. The Transferee Company will continue and therefore he undertakes to make the payment as finally determined as per law. It is also recorded in the said order that the Learned Counsel Ms. Pankti Shah for the Income Tax Department appeared and stated that she has received the reply from the Petitioner Companies. On going through the reply, she has no objection to approval of the Scheme. Further, Mr. Suresh Shrivastava for the OL appeared and stated that Report has been filed and response has been received from the Petitioner Companies. After going through the response of the Petitioner Companies and the commitments made therein regarding compliances, there is no objection by the office of OL to approval of the Scheme.

12. It is recorded in the order dated 05.06.2023 that Mr. B. Rama Ambedkar, Asst. Director from RD office appeared and stated that he has received the

reply from the Petitioner Companies and subject to the undertakings regarding compliances given by the Petitioner Companies, the RD office has no objection to the approval of the Scheme.

13. Heard submissions and perused documents placed on record. We have perused the approval accorded by the members and creditors of the Petitioner Companies to the proposed Scheme, and the no objections given by the respective statutory authorities i.e., Official Liquidator, Income Tax Department and Regional Director. It appears that the requirements of the provisions of section 230 and 232 are satisfied by the petitioner companies. It seems that the proposed Scheme of Amalgamation is bona fide and in the interest of the shareholders and creditors. Therefore, the petition is allowed and the Scheme annexed with the petition at Annexure-A envisaging Amalgamation of Madhurkamal (Thaltej) Complex Private Limited, Madhav (Thaltej) Complex Private Limited, Mandar (Thaltej) Complex Private Limited, Vyom Realty Private Limited, Shushna Complex Private Limited, Viraj Complex Private Limited, Shreekala Infrastructure Private Limited, Siddhivinayak Securities Private Limited, Shaligram Investments Private Limited with Ganeshsagar Infrastructure Private Limited is hereby sanctioned. It is declared that the said sanctioned scheme shall be binding on all the petitioner companies and their shareholders, creditors and all concerned under the scheme.

14. Notwithstanding the above, if any deficiency is found or, violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal to the scheme will not come in the way of action being taken, albeit, in accordance with law, against the concerned persons, directors and officials of the Petitioners.

15. While approving the Scheme as above, we further clarify that this order should not be construed as an order in any manner granting exemption from payment of stamp duty, or taxes including income tax, GST etc., or any other charges or payment in accordance with law, or any kind of waiver in respect of any permission / compliance with any other requirement which may be specifically required under any law. It is further clarified that Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the Scheme and sanction of the Scheme of Amalgamation given hereunder shall not adversely affect the rights of Income Tax Department on any past, present or future proceedings.

16. **The Scheme is sanctioned with following directions:**

i. The Scheme of Amalgamation as annexed herewith as **"Annexure A"** is hereby sanctioned and it is declared that the same shall be binding on the Petitioner Companies and their Shareholders and Creditors and all concerned under the Scheme.

ii. It is declared that all the transferor companies shall be dissolved without winding up.

iii. All the properties mentioned in schedule as **"Annexure B"**, rights and powers of all the transferor companies specified in the schedule hereto and all the other properties, rights and powers of all the transferor companies be transferred without any further act or deed to the transferee Company and accordingly the same shall, pursuant to Section 232 of the Act, vest in the transferee company for all the estate and interest of all the transferor companies therein but subject nevertheless to all charges now affecting the same, if any.

iv. Upon coming into effect of this Scheme and in consideration of the amalgamation of each of the Transferor Companies in the Transferee Company, the Transferee Company shall, without any further application, act, instrument or deed, issue and allot to the respective equity shareholders of the Transferor Companies whose names are recorded in the respective register of members as a member of the Transferor Companies on the Record Date fully paid up equity shares, free and clear from all encumbrances together with all rights and benefits attached thereto in the following ratio of:

a) *482 (Four Hundred Eighty Two) Transferee Company Shares, credited as fully paid-up, for every 10,000 (Ten Thousand) equity shares of the face value of Rs. 10/- (Rupees Ten only)*

each fully paid-up held by such member in the First Transferor Company;

b) *289 (Two hundred Eighty Nine) Transferee Company Shares, credited as fully paid-up, for every 10,000 (Ten Thousand) equity shares of the face value of Rs.10/- (Rupees Ten only) each fully paid-up held by such member in the Second Transferor Company;*

c) *5 (Five) Transferee Company Shares, credited as fully paid-up, for every 13,982 (Thirteen Thousand Nine Hundred Eighty Two) equity shares of the face value of Rs. 10/- (Rupees Ten only) each fully paid-up held by such member in the Third Transferor Company;*

d) *62 (Sixty Two) Transferee Company Shares, credited as fully paid-up, for every 10,000 (Ten Thousand) equity shares of the face value of Rs. 10/- (Rupees Ten only) each fully paid-up held by such member in the Fourth Transferor Company;*

e) *2 (Two) Transferee Company Shares, credited as fully paid-up, for every 10,000 (Ten Thousand) equity shares of the face value of Rs. 10/- (Rupees Ten only)each fully paid-up held by such member in the Fifth Transferor Company;*

f) *2 (Two) Transferee Company Shares, credited as fully paid-up, for every 10,000 (Ten Thousand) equity shares of the face value of Rs. 10/- (Rupees Ten only) each fully paid-up held by such member in the Sixth Transferor Company;*

g) *2 (Two) Transferee Company Shares, credited as fully paid-up, for every 10,000 (Ten Thousand) equity shares of the face value of Rs. 10/- (Rupees Ten only) each fully paid-up held by such member in the Seventh Transferor Company;*

h) *3 (Three) Transferee Company Shares, credited as fully paid-up, for every 10,000 (Ten Thousand) equity shares of the face value of Rs. 10/- (Rupees Ten only) each fully paid-up held by such member in the Eighth Transferor Company;*

i) *3 (Three) Transferee Company Shares, credited as fully paid-up, for every 10,000 (Ten Thousand) equity shares of the face value of Rs. 10/- (Rupees Ten only) each fully paid-up held by such member in the Ninth Transferor Company;*

v. All proceedings, if any, now pending or to be initiated, by or against all the transferor companies shall be continued by or against the transferee company.

vi. All workers/employees of all the transferor companies shall be deemed to become the workers /employees of the transferee company with effect from the Appointed Date and shall stand absorbed in the transferee company in accordance with the Scheme without any interruption of service and on terms and conditions no less favorable than those on which they are engaged by all the transferor companies, as on the Effective Date.

vii. The Petitioner Companies within thirty days of the date of receipt of this order, cause a certified copy of this order to be delivered to the Registrar of Companies for registration, and on such certified copy being so delivered, the entire Undertaking of all the transferor companies shall stand transferred to the transferee company and the Registrar of Companies shall place all documents relating to all the transferor companies to the file kept by him in relation to the transferee company and the files relating to the said two companies shall be treated accordingly.

viii. All concerned Authorities to act on the copy of this order along with the Scheme authenticated by the Registrar of this Tribunal who shall issue the certified copy of this order along with the Scheme immediately.

ix. The Petitioner Companies are directed to lodge a copy of this Order and the approved Scheme and Schedule of Assets of all the transferor companies attached as Annexure-B with this order, duly authenticated by the Registrar of this Tribunal, with the concerned Superintendent of Stamps, for the purpose of adjudication of stamp duty, if any, within 60 days from the date of the Order.

x. The Petitioner Companies are further directed to file a copy of this order along with the copy of the Scheme with the concerned Registrar of Companies, electronically, along with E-Form INC-28 in addition to physical copy within 30 days from the date of issuance of the certified copy of the Order by the Registry as per relevant provisions of the Act.

xi. The Income Tax Department will be free to examine the aspect of any tax payable as a result of the sanction of the Scheme and if it is found that the Scheme of Arrangement ultimately results in tax avoidance or is not in accordance with the applicable provisions of Income Tax Act, then the Income Tax Dept. shall be at liberty to initiate appropriate course of action as per law. Any sanction of the Scheme of Arrangement under Sections 230-232 of the Income Tax

Act, 2013 shall not adversely affect the rights of Income Tax Department or any past, present or future proceedings and the sanction of the scheme shall not come in its way for the appropriate course of action as per law for the tax liabilities, if any.

xii. The legal fees and expenses of the office of the Regional Director are quantified at Rs.10,000/-in respect of all the Petitioner Companies. The said fees to the Regional Director shall be paid by the transferee company.

xiii. The legal fees and expenses of the office of the Official Liquidator are quantified at Rs.10,000/- in respect of all the Petitioner Transferor Companies. The said fees to the Official Liquidator shall be paid by the Transferee Company.

xiv. Any person aggrieved shall be at liberty to apply to the Tribunal in the above matter for any direction that may be necessary.

17. The Company Petition CP (CAA) No. 15 of 2023 connected with CA (CAA) No. 10 of 2023 is allowed and disposed of, in terms of above order.

-Sd-
AJAI DAS MEHROTRA
MEMBER (TECHNICAL)

-Sd-
SHAMMI KHAN
MEMBER (JUDICIAL)

Abhishek Singh-LRA/Swetambary-Steno

Annexure "A"

ANNEXURE - "AE"

1107

1

SCHEME OF AMALGAMATION

OF

MADHURKAMAL (THALTEJ) COMPLEX PRIVATE LIMITED

AND

MADHAV (THALTEJ) COMPLEX PRIVATE LIMITED

AND

MANDAR (THALTEJ) COMPLEX PRIVATE LIMITED

AND

VYOM REALTY PRIVATE LIMITED

AND

SHUSHNA COMPLEX PRIVATE LIMITED

AND

VIRAJ COMPLEX PRIVATE LIMITED

AND

SHREEKALA INFRASTRUCTURE PRIVATE LIMITED

AND

SIDDHIVINAYAK SECURITIES PRIVATE LIMITED

AND

SHALIGRAM INVESTMENTS PRIVATE LIMITED

WITH

GANESHSAGAR INFRASTRUCTURE PRIVATE LIMITED

(UNDER SECTIONS 230 TO 232 AND OTHER APPLICABLE PROVISIONS OF THE COMPANIES ACT, 2013)

A. PREAMBLE

This Scheme (*as defined hereinafter*) is presented under Sections 230 to 232 and other applicable provisions of the Act (*as defined hereinafter*), for the amalgamation of the Transferor Companies (*as defined hereinafter*) with the Transferee Company (*as defined hereinafter*); issuance of New Equity Shares (*as defined hereinafter*) by the Transferee Company to the equity shareholders of each of the Transferor Companies; merger of the authorised share capital of the respective Transferor Companies with the authorised share capital of the Transferee Company; and for matters consequential, incidental, supplementary and/ or otherwise integrally connected therewith.

B. INTRODUCTION

(i) The First Transferor Company (*as defined hereinafter*) was incorporated on 2nd August 2002 as Madhurkamal (Thaltej) Complex Private Limited, a private limited company, with the Registrar of Companies, Gujarat, under the provisions of Part IX of the Companies Act, 1956 and now deemed to be incorporated under the Act. The Corporate Identification Number of the First Transferor Company is U45201GJ2002PTC041054. The registered office of the First Transferor Company is situated at Ganesh Corporate House, 100 ft. Hebatpur – Thaltej Road, Near Sola Bridge, Off S. G Highway, Ahmedabad – 380 054, Gujarat, India. The First Transferor Company was incorporated with an object to, *inter alia*, carry on the business of and act as promoters, organisers, estate agent and developers of lands, estates, residential, commercial properties, etc.

(ii) The Second Transferor Company (*as defined hereinafter*) was incorporated on 2nd August 2002 as Madhav (Thaltej) Complex Private Limited, a private limited company, with the Registrar of Companies, Gujarat, under the provisions of Part IX of the Companies Act, 1956 and now deemed to be incorporated under the Act. The Corporate Identification Number of the Second Transferor Company is U45201GJ2002PTC041056. The registered office of the Second Transferor Company is situated at Ganesh Corporate House, 100 ft. Hebatpur – Thaltej Road, Near Sola Bridge, Off S. G Highway, Ahmedabad – 380 054, Gujarat, India. The Second Transferor Company was incorporated with an object to, *inter alia*, carry on the business of and act as promoters, organisers, estate agent and developers of lands, estates, residential, commercial properties, etc.

(iii) The Third Transferor Company (*as defined hereinafter*) was incorporated on 2nd August 2002 as Mandar (Thaltej) Complex Private Limited, a private limited company, with the Registrar of Companies, Gujarat, under the provisions of Part IX of the Companies Act, 1956 and now deemed to be incorporated under the Act. The Corporate Identification Number of the Third Transferor Company is U45201GJ2002PTC041059. The registered office of the Third Transferor Company is situated at Ganesh Corporate House, 100 ft. Hebatpur – Thaltej Road, Near Sola Bridge, Off S. G Highway, Ahmedabad – 380 054, Gujarat, India. The Third Transferor Company was incorporated with an object to, *inter alia*, carry on the business of and act as promoters, organisers, estate agent and developers of lands, estates, residential, commercial properties, etc.

(iv) The Fourth Transferor Company (*as defined hereinafter*) was incorporated on 19th August 2002 as Vyom Realty Private Limited, a private limited company, with the Registrar of Companies, Gujarat, under the provisions of Part IX of the Companies Act, 1956 and now deemed to be incorporated under the Act. The Corporate Identification Number of the Fourth Transferor Company is U45201GJ2002PTC041138. The registered office of the Fourth Transferor Company is situated at Ganesh Corporate House, 100 ft. Hebatpur – Thaltej Road, Near Sola Bridge, Off S. G Highway, Ahmedabad – 380 054, Gujarat, India. The Fourth Transferor Company was incorporated with an object to, *inter alia*, carry on the business of and act as promoters, organisers, estate agent and developers of lands, estates, residential, commercial properties, etc.

(v) The Fifth Transferor Company (*as defined hereinafter*) was incorporated on 20th August 2002 as Shushna Complex Private Limited, a private limited company, with the Registrar of Companies, Gujarat, under the provisions of Part IX of the Companies Act, 1956 and now deemed to be incorporated under the Act. The Corporate Identification Number of the Fifth Transferor Company is U45201GJ2002PTC041150. The registered office of the Fifth Transferor Company is situated at Ganesh Corporate House, 100 ft. Hebatpur – Thaltej Road, Near Sola Bridge, Off S. G Highway, Ahmedabad – 380 054, Gujarat, India. The Fifth Transferor Company was incorporated with an object to, *inter alia*, carry on the business of and act as promoters, organisers, estate agent and developers of lands, estates, residential, commercial properties, etc.

(vi) The Sixth Transferor Company (*as defined hereinafter*) was incorporated on 20th August 2002 as Viraj Complex Private Limited, a private limited company, with the Registrar of Companies, Gujarat, under the provisions of Part IX of the Companies Act, 1956 and now deemed to be incorporated under the Act. The Corporate Identification Number of the Sixth Transferor Company is U45201GJ2002PTC041151. The registered office of the Sixth Transferor Company is situated at Ganesh Corporate House, 100 ft. Hebatpur – Thaltej Road, Near Sola Bridge, Off S. G Highway, Ahmedabad – 380 054, Gujarat, India. The Sixth Transferor Company was incorporated with an object to, *inter alia*, carry on the business of and act as promoters, organisers, estate agent and developers of lands, estates, residential, commercial properties, etc.

(vii) The Seventh Transferor Company (*as defined hereinafter*) was incorporated on 1st October 2002 as Shreekala Infrastructure Private Limited, a private limited company, with the Registrar of Companies, Gujarat, under the provisions of Part IX of the Companies Act, 1956 and now deemed to be incorporated under the Act. The Corporate Identification Number of the Seventh Transferor Company is U45201GJ2002PTC041357. The registered office of the Seventh Transferor Company is situated at 30, Maniratnam Row House, Part – 2, P & T Colony Road, Vasna, Ahmedabad – 380 007, Gujarat, India. The Seventh Transferor Company was incorporated with an object to, *inter alia*, carry on the business of and act as promoters, organisers, estate agent and developers of lands, estates, residential, commercial properties, etc.

(viii) The Eighth Transferor Company (*as defined hereinafter*) was incorporated on 9th August 1995 as Siddhivinayak Securities Private Limited, a private limited company, with the Registrar of Companies, Gujarat, under the provisions of the Companies Act, 1956 and now deemed to be incorporated under the Act. The Corporate Identification Number of the Eighth Transferor Company is U71110GJ1995PTC027045. The registered office of the Eighth Transferor Company is situated at Ganesh Corporate House, 100 ft. Hebatpur – Thaltej Road, Near Sola Bridge, Off S. G Highway, Ahmedabad – 380 054, Gujarat, India. The Eighth Transferor Company was incorporated with an object to, *inter alia*, carry on the business of and act as share and stock brokers, Registrar to issue, etc. The Eighth Transferor Company holds the entire paid-up equity share capital of Maheshwari (Thaltej) Complex Private Limited. Thus, Maheshwari (Thaltej) Complex Private Limited is a wholly-owned subsidiary of the Eighth Transferor Company.

(ix) The Ninth Transferor Company (*as defined hereinafter*) was incorporated on 9th August 1995 as Shaligram Investments Private Limited, a private limited company, with the Registrar of Companies, Gujarat, under the provisions of the Companies Act, 1956 and now deemed to be incorporated under the Act. The Corporate Identification Number of the Ninth Transferor Company is U21019GJ1995PTC027044. The registered office of the Ninth Transferor Company is situated at Ganesh Corporate House, 100 ft. Hebatpur – Thaltej Road, Near Sola Bridge, Off S. G Highway, Ahmedabad – 380 054, Gujarat, India. The Ninth Company was incorporated with an object to, *inter alia*, carry on the business of an investment company and to sell, purchase, exchange, subscribe, acquire, undertake, underwrite, hold, auction, convert or otherwise to deal in all types of shares, securities, stocks, bonds, etc.

(x) The Transferee Company (*as defined hereinafter*) was incorporated on 1st October 2002 as Ganeshsagar Infrastructure Private Limited, a private limited company, with the Registrar of Companies, Gujarat, under the provisions of Part IX of the Companies Act, 1956 and now deemed to be incorporated under the Act. The Corporate Identification Number of the Transferee Company is U45201GJ2002PTC041356. The registered office of the Transferee Company is situated at Ganesh Corporate House, 100 ft. Hebatpur – Thaltej Road, Near Sola Bridge, Off S. G Highway, Ahmedabad – 380 054, Gujarat, India. The Transferee Company was incorporated with an object to, *inter alia*, carry on the business of and act as promoters, organisers, estate agent and developers of lands, estates, residential, commercial properties, etc.

C. RATIONALE

The amalgamation would, *inter alia*, bring about:

1) simplification of the corporate structure;

2) better, efficient and economical management and control over the running of businesses;

3) elimination of duplication in administrative costs and multiple record keeping thus resulting in cost savings, increased operational efficiencies and administrative convenience; and

4) better synergies, optimal utilization of resources and obtaining economics of scale.

D. PARTS OF THE SCHEME

(a) **Part I** of the Scheme deals with definitions, interpretation, date of taking effect and the share capital;

(b) **Part II** of the Scheme deals with the amalgamation of the Transferor Companies with the Transferee Company in accordance with Sections 230 to 232 of the Companies Act, 2013; and

(c) **Part III** of the Scheme deals with the general terms and conditions applicable to the Scheme.

PART I

DEFINITIONS, INTERPRETATION, DATE OF TAKING EFFECT AND SHARE CAPITAL

1. DEFINITIONS

In this Scheme unless the meaning or context otherwise requires the following words or expressions, wherever used, (including in the preamble and the introductory paragraphs above) shall have the following meanings:

1.1. **"Act"** means the Companies Act, 2013, the rules and regulations made thereunder and shall include any statutory modification or re-enactment thereof for the time being in force;

1.2. **"Applicable Law"** means all applicable (i) statutes, enactments, acts of legislature or parliament, laws, ordinances, code, directives, rules, regulations, bye-laws, notifications, circulars, guidelines or policies of any applicable jurisdiction; and (ii) administrative interpretation, writ, injunction, directions, directives, judgment, arbitral award, decree, orders or approvals required from Governmental Authorities of, or agreements with, any Governmental Authority or a recognised stock exchange;

1.3. **"Appointed Date"** means 1st April 2022;

1.4. **"Board of Directors"** or **"Board"** in relation to the Companies means their respective board of directors, and unless it is repugnant to the context or otherwise, includes any committee of directors or any person authorised by the board of directors or by such committee of directors;

1.5. **"Companies"** means collectively, the Transferor Companies and the Transferee Company;

1.6. "**Competent Authority**" means the Hon'ble National Company Law Tribunal, Ahmedabad Bench, which has the jurisdiction in relation to the Companies;

1.7. "**Effective Date**" means the last of the dates on which all conditions, matters and filings referred to in Clause 6 of Part III hereof have been fulfilled or waived and necessary orders, approvals and consents referred to therein have been obtained. References in this Scheme to "upon this Scheme becoming effective" or "coming into effect of this Scheme" or the "Scheme becoming effective" or "Scheme becomes effective" or "effectiveness of this Scheme" or likewise, means and refers to the Effective Date;

1.8. "**Eighth Transferor Company**" means Siddhivinayak Securities Private Limited, a private limited company, incorporated under the provisions of the Companies Act, 1956 and having its registered office at Ganesh Corporate House, 100 ft. Hebatpur – Thaltej Road, Near Sola Bridge, Off S. G Highway, Ahmedabad – 380 054, Gujarat, India;

1.9. "**Encumbrance**" means (a) any encumbrance including, without limitation, any claim, mortgage, negative lien, pledge, equitable interest, charge (whether fixed or floating), hypothecation, lien, deposit by way of security, security interest, trust, guarantee, commitment, assignment by way of security, or other encumbrances or security interest of any kind securing or conferring any priority of payment in respect of any obligation of any person and includes without limitation any right granted by a transaction which, in legal terms, is not the granting of security but which has an economic or financial effect similar to the granting of security in each case under any law, contract or otherwise, including any option or right of pre-emption, public right, common right, easement rights, any attachment, restriction on use, transfer, receipt of income or exercise of any other attribute of ownership, right of set-off and/ or any other interest held by a third party; (b) any voting agreement, conditional sale contracts, interest, option, right of first offer or transfer restriction; (c) any adverse claim as to title, possession or use; and/ or (d) any agreement, conditional or otherwise, to create any of the foregoing, and the term 'encumber' shall be construed accordingly;

1.10. "**Fifth Transferor Company**" means Shushna Complex Private Limited, a private limited company, incorporated under the provisions of Part IX of the Companies Act, 1956 and having its registered office at Ganesh Corporate House, 100 ft. Hebatpur – Thaltej Road, Near Sola Bridge, Off S. G Highway, Ahmedabad – 380 054, Gujarat, India;

1.11. "**First Transferor Company**" means Madhurkamal (Thaltej) Complex Private Limited, a private limited company, incorporated under the provisions of Part IX of the Companies Act, 1956 and having its registered office at Ganesh Corporate House, 100 ft. Hebatpur – Thaltej Road, Near Sola Bridge, Off S. G Highway, Ahmedabad – 380 054, Gujarat, India;

1.12. "**Fourth Transferor Company**" means Vyom Realty Private Limited, a private limited company, incorporated under the provisions of Part IX of the Companies Act, 1956 and having its registered office at Ganesh Corporate House, 100 ft. Hebatpur – Thaltej Road, Near Sola Bridge, Off S. G Highway, Ahmedabad – 380 054, Gujarat, India;

1.13. "**Governmental Authority**" means any governmental or statutory or regulatory or administrative authority, government department, agency, commission, board, tribunal

or court or other entity authorised to make laws, rules or regulations or pass directions, having or purporting to have jurisdiction over any state or other sub-division thereof or any municipality, district or other sub-division thereof pursuant to Applicable Law;

1.14. **"IT Act"** means the Income Tax Act, 1961, the rules and regulations made thereunder and shall include any statutory modification or re-enactment thereof for the time being in force;

1.15. **"New Equity Shares"** has the meaning given to it in Clause 5.2 of Part II of the Scheme;

1.16. **"Ninth Transferor Company"** means Shaligram Investments Private Limited, a private limited company, incorporated under the provisions of the Companies Act, 1956 and having its registered office at Ganesh Corporate House, 100 ft. Hebatpur – Thaltej Road, Near Sola Bridge, Off S. G Highway, Ahmedabad – 380 054, Gujarat, India;

1.17. **"Record Date"** means the date to be fixed by the Board of Directors of the Transferee Company, for the purpose of determining the equity shareholders of each of the Transferor Companies to whom the New Equity Shares will be allotted pursuant to this Scheme;

1.18. **"Registrar of Companies"** or **"RoC"** means the Registrar of Companies, Gujarat, having jurisdiction over the Companies;

1.19. **"Scheme"** or **"the Scheme"** or **"this Scheme"** means this scheme of amalgamation pursuant to Sections 230 – 232 and other relevant provisions of the Act, with such modifications and amendments as may be made from time to time, with the appropriate approvals and sanctions of the Competent Authority and other relevant Governmental Authorities, as may be required under the Act and under all other Applicable Laws;

1.20. **"Second Transferor Company"** means Madhav (Thaltej) Complex Private Limited, a private limited company, incorporated under the provisions of Part IX of the Companies Act, 1956 and having its registered office at Ganesh Corporate House, 100 ft. Hebatpur – Thaltej Road, Near Sola Bridge, Off S. G Highway, Ahmedabad – 380 054, Gujarat, India;

1.21. **"Seventh Transferor Company"** means Shreekala Infrastructure Private Limited, a private limited company, incorporated under the provisions of Part IX of the Companies Act, 1956 and having its registered office at 30, Maniratnam Row House, Part – 2, P & T Colony Road, Vasna, Ahmedabad – 380 007, Gujarat, India;

1.22. **"Sixth Transferor Company"** means means Viraj Complex Private Limited, a private limited company, incorporated under the provisions of Part IX of the Companies Act, 1956 and having its registered office at Ganesh Corporate House, 100 ft. Hebatpur – Thaltej Road, Near Sola Bridge, Off S. G Highway, Ahmedabad – 380 054, Gujarat, India;

1.23. **"Third Transferor Company"** means Mandar (Thaltej) Complex Private Limited, a private limited company, incorporated under the provisions of Part IX of the Companies Act, 1956 and having its registered office at Ganesh Corporate House, 100 ft. Hebatpur

– Thaltej Road, Near Sola Bridge, Off S. G Highway, Ahmedabad – 380 054, Gujarat, India;

1.24. "**Transferee Company**" means Ganeshsagar Infrastructure Private Limited, a private limited company, incorporated under the provisions of Part IX of the Companies Act, 1956 and having its registered office at Ganesh Corporate House, 100 ft. Hebatpur – Thaltej Road, Near Sola Bridge, Off S. G Highway, Ahmedabad – 380 054, Gujarat, India;

1.25. "**Transferee Company Shares**" means the fully paid-up equity shares of the Transferee Company, each having a face value of Rs. 10/- (Rupees Ten only) and one (1) vote per equity share; and

1.26. "**Transferor Companies**" means, together, the First Transferor Company, the Second Transferor Company, the Third Transferor Company, the Fourth Transferor Company, the Fifth Transferor Company, the Sixth Transferor Company, the Seventh Transferor Company, the Eighth Transferor Company and the Ninth Transferor Company, and not withstanding anything to the contrary in this Scheme, shall include:

i. any and all of their assets, whether movable or immovable, if any, tangible or intangible, real or personal, corporeal or incorporeal, in possession or reversion, present, future, or contingent, including but not limited to registrations, electrical fittings, installations, tools, accessories, power lines, stocks, computers, communication facilities, furniture, fixtures and office equipment, all rights, title, interests, covenants, undertakings and rights appurtenant to the immovable property, if any, including continuing rights, covenants, title and interests in connection with any land (together with the buildings and structures standing thereon, if any), whether freehold or leasehold or leave and licensed or right of way and all documents (including panchnamas, declarations, receipts) of title, rights and easements in relation thereto, plant, machinery, appliances, equipment, whether leased or otherwise, together with all present and future liabilities including contingent liabilities and debts appertaining thereto;

ii. any and all of their investments including actionable claims, earnest monies, loans and advances, recoverable in cash or in kind or for value to be received, provisions, all cash and bank balances and deposits, money at call and short notice, contingent rights or benefits, premiums, receivables, including dividends declared or interest accrued thereon, reserves, surplus, provisions, funds and benefits of all agreements;

iii. any and all of their licenses (including the licenses granted by any governmental, statutory or regulatory bodies for the purpose of carrying on their respective businesses or in connection therewith), permissions, allotments, approvals, consents, concessions, clearances, credits, awards, sanctions, exemptions, subsidies, registrations, no-objection certificates, permits, quotas, rights, entitlements, authorisation, applications made for obtaining all or any of the aforesaid, pre-qualifications, bid acceptances, tenders, certificates, tenancies, sales tax credits, income-tax credits, goods and service tax credits, privileges and benefits of/ arising out of all contracts, agreements, applications and arrangements and all other rights including lease rights, powers and facilities of every kind and description whatsoever, equipment, installations and utilities such as electricity,

water and other service connections, all benefits including subsidies, grants, incentives, tax credits (including but not limited to credits in respect of goods and services tax, income tax, minimum alternate tax, value added tax, etc., tax refunds) and all other rights, claims and powers, of whatsoever nature;

iv. any and all of their debts, borrowings and liabilities, present or future, whether secured or unsecured, all guarantees, assurances, commitments and obligations of any nature or description, whether fixed, contingent or absolute, asserted or unasserted, matured or unmatured, liquidated or unliquidated, accrued or not accrued, known or unknown, due or to become due, whenever or however arising (including, without limitation, whether arising out of any contract or tort based on negligence or strict liability);

v. all contracts, agreements, deeds including sale deeds, documents, licenses, leases, memoranda of undertakings, memoranda of agreements, memoranda of agreed points, letters of agreed points, bids, letters of intent, arrangements, undertakings, whether written or otherwise, bonds, schemes, arrangements, service agreements, sales orders, purchase orders, operation and maintenance compliance, equipment purchase agreements or other instruments of whatsoever nature to which the respective Transferor Companies are a party, and other assurances in favour of each of the Transferor Companies or powers or authorizations granted by or to each of them;

vi. all legal proceedings, suits, claims, disputes, causes of action, litigations, petitions, appeals, writs, legal, taxation or other proceedings of whatever nature, (including before any statutory or quasi-judicial authority or tribunal), under Applicable Law, by or against the respective Transferor Companies;

vii. all insurance policies, if any, of the respective Transferor Companies;

viii. any and all of their staff and employees, who are on their respective payrolls, if any, as are primarily engaged in or in relation to the business, activities and operations carried on by each of the Transferor Companies, including liabilities of each of the Transferor Companies, with regard to their staff and employees, with respect to the payment of gratuity, superannuation, pension benefits and provident fund or other compensation or benefits, if any, whether in the event of resignation, death, retirement, or otherwise, in terms of their license, at their respective offices or otherwise;

ix. rights of any claim not made by each of the Transferor Companies in respect of any refund of tax, duty, cess or other charge, including any erroneous or excess payment thereof made by each of the Transferor Companies and any interest thereon, with regard to any law, act or rule or scheme made by the Governmental Authority, and in respect of carry forward of un-absorbed losses and unabsorbed tax depreciation, deferred revenue expenditure, rebate, incentives, benefits etc., under the IT Act, sales tax, value added tax, custom duties and good and service tax or any other or like benefits under Applicable Law;

x. any and all of the advance monies, earnest monies, margin money and/or security deposits, payment against warrants or other entitlements, as may be lying with them, if any;

xi. all deposits and balances with government, quasi-government, local and other authorities and bodies, customers and other persons, earnest monies and/or security deposits paid or received by each of the Transferor Companies, directly or indirectly;

xii. all books, records, files, papers, engineering and process information, application software, software licenses (whether proprietary or otherwise), test reports, computer programs, drawings, manuals, data, databases including databases for procurement, commercial and management, catalogues, quotations, sales and advertising materials, product registrations, dossiers, lists of present and former suppliers including service providers, customer credit information, customer/supplier pricing information, list of present and former agents and brokers and all other books and records, whether in physical or electronic form;

xiii. amounts claimed by any of the Transferor Companies whether or not so recorded in the books of account of the respective Transferor Companies from any Governmental Authority, under any law, act or rule in force, as refund of any tax, duty, cess, or of any excess payment;

xiv. all registrations, trademarks, trade names, computer programs, websites, manuals, data, service marks, copyrights, patents, designs, domain names, applications for trademarks, trade names, service marks, copyrights, designs and domain names, if any, exclusively used by or held for use by each of the Transferor Companies in their respective businesses, activities and operations carried on by each of the Transferor Companies; and

xv. all rights to use and avail telephones, telexes, facsimile, email, internet, leased line connections and installations, utilities, electricity and other services, reserves, provisions, funds, benefits of assets or properties or other interests held in trusts, registrations, contracts, engagements, arrangements of all kind, privileges and all other rights, easements, liberties and advantages of whatsoever nature and wheresoever situated belonging to or in the ownership, power or possession and in control of or vested in or granted in favour of or enjoyed by each of the Transferor Companies and all other rights and interests of whatsoever nature belonging to or in the ownership, power, possession or control of or vested in or granted in favour of or held for the benefit of or enjoyed by the respective Transferor Companies.

2. INTERPRETATION

2.1. Terms and expressions which are used in this Scheme but not defined herein shall, unless repugnant or contrary to the context or meaning thereof, have the same meaning ascribed to them under the Act, the IT Act and other Applicable Laws, rules, regulations, bye-laws, as the case may be, including any statutory modification or re-enactment thereof, from time to time. In particular, wherever reference is made to the Competent Authority in this Scheme, the reference would include, if appropriate, reference to the Competent

Authority or such other forum or authority, as may be vested with any of the powers of the Competent Authority under the Act and/or rules made thereunder.

2.2. In this Scheme, unless the context otherwise requires:

(i) references to "persons" shall include individuals, bodies corporate (wherever incorporated), unincorporated associations and partnerships;

(ii) the headings, sub-headings, titles, sub-titles to clauses, sub-clauses and paragraphs are inserted for ease of reference only and shall not form part of the operative provisions of this Scheme and shall not affect the construction or interpretation of this Scheme;

(iii) references to one gender includes all genders;

(iv) words in the singular shall include the plural and *vice versa*;

(v) any references in this Scheme to "upon this Scheme becoming effective" or "coming into effect of this Scheme" or the "Scheme becoming effective" or "Scheme becomes effective" or "effectiveness of this Scheme" or likewise shall be construed to be a reference to the Effective Date;

(vi) words "include" and "including" are to be construed without limitation;

(vii) terms "hereof", "herein", "hereby", "hereto" and derivative or similar words shall refer to this entire Scheme or specified Clauses of this Scheme, as the case may be;

(viii) A reference to "writing" or "written" includes printing, typing, lithography and other means of reproducing words in a visible form including e-mail;

(ix) Reference to any agreement, contract, document or arrangement or to any provision thereof shall include references to any such agreement, contract, document or arrangement as it may, after the date hereof, from time to time, be amended, supplemented or novated;

(x) reference to the Clause shall be a reference to the Clause of this Scheme; and

(xi) references to any provision of law or legislation or regulation shall include: (a) such provision as from time to time amended, modified, re-enacted or consolidated (whether before or after the date of this Scheme) to the extent such amendment, modification, re-enactment or consolidation applies or is capable of applying to the transaction entered into under this Scheme and (to the extent liability there under may exist or can arise) shall include any past statutory provision (as amended, modified, re-enacted or consolidated from time to time) which the provision referred to has directly or indirectly replaced, (b) all subordinate legislations (including circulars, notifications, clarifications or supplement(s) to, or replacement or amendment of, that law or legislation or regulation) made from time to time under that provision (whether or not amended, modified, re-enacted or consolidated from time to time) and any retrospective amendment.

3. DATE OF TAKING EFFECT

3.1. The Scheme set out herein in its present form or with any modification(s) approved or imposed or directed by the Competent Authority or any other Governmental Authority shall be effective from the Appointed Date but shall be operative from the Effective Date.

4. SHARE CAPITAL

4.1. The share capital of the Companies as on 30th November 2022 is as set out below:

(i) Share capital of the First Transferor Company is as under:

Particulars	Amount (in Rupees)
Authorized Capital	
10,000 Equity Shares of Rs. 10/- each	1,00,000
Total	**1,00,000**
Issued, subscribed and Paid up Share Capital	
10,000 Equity Shares of Rs. 10/- each	1,00,000
Total	**1,00,000**

(ii) Share capital of the Second Transferor Company is as under:

Particulars	Amount (in Rupees)
Authorized Capital	
10,000 Equity Shares of Rs. 10/- each	1,00,000
Total	**1,00,000**
Issued, subscribed and Paid up Share Capital	
10,000 Equity Shares of Rs. 10/- each	1,00,000
Total	**1,00,000**

(iii) Share capital of the Third Transferor Company is as under:

Particulars	Amount (in Rupees)
Authorized Capital	
1,30,000 Equity Shares of Rs. 10/- each	13,00,000
Total	**13,00,000**
Issued, subscribed and Paid up Share Capital	
13,982 Equity Shares of Rs. 10/- each	1,39,820
Total	**1,39,820**

(iv) Share capital of the Fourth Transferor Company is as under:

Particulars	Amount (in Rupees)
Authorized Capital	
10,000 Equity Shares of Rs. 10/- each	1,00,000
Total	**1,00,000**
Issued, subscribed and Paid up Share Capital	
10,000 Equity Shares of Rs. 10/- each	1,00,000
Total	**1,00,000**

(v) Share capital of the Fifth Transferor Company is as under:

Particulars	Amount (in Rupees)
Authorized Capital	
10,000 Equity Shares of Rs. 10/- each	1,00,000
Total	**1,00,000**
Issued, subscribed and Paid up Share Capital	
10,000 Equity Shares of Rs. 10/- each	1,00,000
Total	**1,00,000**

(vi) Share capital of the Sixth Transferor Company is as under:

Particulars	Amount (in Rupees)
Authorized Capital	
10,000 Equity Shares of Rs. 10/- each	1,00,000
Total	**1,00,000**
Issued, subscribed and Paid up Share Capital	
10,000 Equity Shares of Rs. 10/- each	1,00,000
Total	**1,00,000**

(vii) Share capital of the Seventh Transferor Company is as under:

Particulars	Amount (in Rupees)
Authorized Capital	
10,000 Equity Shares of Rs. 10/- each	1,00,000
Total	**1,00,000**
Issued, subscribed and Paid up Share Capital	
10,000 Equity Shares of Rs. 10/- each	1,00,000
Total	**1,00,000**

(viii) Share capital of the Eighth Transferor Company is as under:

Particulars	Amount (in Rupees)
Authorized Capital	
2,00,000 Equity Shares of Rs. 10/- each	20,00,000
Total	**20,00,000**
Issued, subscribed and Paid up Share Capital	
10,000 Equity Shares of Rs. 10/- each	1,00,000
Total	**1,00,000**

(ix) Share capital of the Ninth Transferor Company is as under:

Particulars	Amount (in Rupees)
Authorized Capital	
2,00,000 Equity Shares of Rs. 10/- each	20,00,000
Total	**20,00,000**
Issued, subscribed and Paid up Share Capital	
10,000 Equity Shares of Rs. 10/- each	1,00,000

Particulars	Amount (in Rupees)
Total	1,00,000

(x) Share capital of the Transferee Company is as under:

Particulars	Amount (in Rupees)
Authorized Capital	
30,80,000 Equity Shares of Rs. 10/- each	3,08,00,000
Total	**3,08,00,000**
Issued, subscribed and Paid up Share Capital	
10,187 Equity Shares of Rs. 10/- each	1,01,870
Total	**1,01,870**

PART II

AMALGAMATION OF THE TRANSFEROR COMPANIES INTO AND WITH THE TRANSFEREE COMPANY

1. TRANSFER AND VESTING OF THE TRANSFEROR COMPANIES INTO AND WITH THE TRANSFEREE COMPANY

1.1. With effect from the Appointed Date and upon this Scheme becoming effective, each of the Transferor Companies along with all their respective assets, liabilities, contracts, employees, licenses, records, approvals etc. being integral parts of the respective Transferor Companies shall stand transferred to and vested in or shall be deemed to have been transferred to and vested in the Transferee Company, as a going concern, without any further act, instrument or deed, together with all their properties, assets, liabilities, rights, benefits and interest therein, subject to the provisions of this Scheme, in accordance with Sections 230 – 232 of the Act, the IT Act and Applicable Law, if any, in accordance with the provisions contained herein.

1.2. Without prejudice to the generality of the above and to the extent applicable, unless otherwise stated herein, upon this Scheme becoming effective and with effect from the Appointed Date:

(a) all assets of the respective Transferor Companies, that are movable in nature or incorporeal property or are otherwise capable of transfer by physical or constructive delivery and/or by endorsement and delivery or by vesting and recordal of whatsoever nature, including machinery, equipment, if any, pursuant to this Scheme shall stand transferred to and vested in and/or be deemed to be transferred to and vested in the Transferee Company, wherever located and shall become the property and an integral part of the Transferee Company. The vesting pursuant to this sub-clause shall be deemed to have occurred by physical or constructive delivery or by endorsement and delivery or by vesting and recordal, pursuant to this Scheme, as appropriate to the property being vested and title to the property shall be deemed to have been transferred accordingly;

(b) all other movable properties of the respective Transferor Companies, sundry debtors, actionable claims, earnest monies, receivables, bills, credits, outstanding

loans and advances, recoverable in cash or in kind or for value to be received, bank balances and deposits, with government, semi-government, local and other authorities and bodies, customers and other persons, shall without any further act, instrument or deed, become the property of the Transferee Company, and the same shall also be deemed to have been transferred by way of delivery of possession of the respective documents in this regard;

(c) all immovable properties of the respective Transferor Companies, if any, including land together with the buildings and structures standing thereon, and rights and interests in immovable properties, if any, of each of the Transferor Companies, whether freehold or leasehold or otherwise and all documents of title, rights and easements in relation thereto, shall be vested in and/or be deemed to have been vested in the Transferee Company, without any further act or deed done or being required to be done by the respective Transferor Companies and/or the Transferee Company. The Transferee Company shall be entitled to exercise all rights and privileges attached to the aforesaid immovable properties, if any, and shall be liable to pay the ground rent and taxes and fulfil all obligations in relation to or applicable to such immovable properties, if any. The relevant authorities shall grant all clearances/permissions, if any, required for enabling the Transferee Company to absolutely own and enjoy the rights/privileges attached to immovable properties in accordance with Applicable Law. The mutation or substitution of the title to the immovable properties shall, upon this Scheme becoming effective, be made and duly recorded in the name of the Transferee Company by the Governmental Authorities pursuant to the sanction of this Scheme by the Competent Authority and upon the Scheme becoming effective in accordance with the terms hereof;

(d) the transfer and vesting of movable and immovable properties as stated above, shall be subject to Encumbrances, if any, affecting the same;

(e) all Encumbrances, if any, existing prior to the Effective Date over the assets of the respective Transferor Companies which secure or relate to any liability, shall, after the Effective Date, without any further act, instrument or deed, continue to be related and attached to such assets or any part thereof to which they related or were attached prior to the Effective Date and as are transferred to the Transferee Company. Provided that if any assets of the respective Transferor Companies have not been Encumbered in respect of the liabilities, such assets shall remain unencumbered and the existing Encumbrance referred to above shall not be extended to and shall not operate over such assets. Further, such Encumbrances shall not relate or attach to any of the other assets of the Transferee Company. The secured creditors, if any, of the Transferee Company and/or other holders of security over the properties of the Transferee Company, shall not be entitled to any additional security over the properties, assets, rights, benefits and interests of the Transferor Companies and therefore, except to the extent such secured creditors of the Transferee Company already have the Encumbrance over the assets of the concerned Transferor Companies, such assets which are not currently Encumbered shall remain free and available for creation of any security thereon in future in relation to any current or future indebtedness of the Transferee Company. The absence of any formal amendment which may be required by a lender or trustee or any third party shall not affect the operation of the foregoing provisions of this Scheme;

(f) all estate, assets, rights, title, claims, interest, investments and properties of the respective Transferor Companies as on the Appointed Date, whether or not included in the books of the respective Transferor Companies, and all assets, rights, title, interest, investments and properties, of whatsoever nature and wherever situate, which are acquired by the concerned Transferor Companies on or after the Appointed Date but prior to the Effective Date, shall be deemed to be and shall become the assets and properties of the Transferee Company;

(g) all contracts, agreements, licences, leases, memoranda of undertakings, memoranda of agreements, memoranda of agreed points, letters of agreed points, bids, letters of intent, arrangements, undertakings, whether written or otherwise, deeds, bonds, agreements, schemes and other instruments to which the respective Transferor Companies are a party, or to the benefit of which, the respective Transferor Companies may be eligible/entitled, and which are subsisting or having effect immediately before the Effective Date, shall, without any further act, instrument or deed continue in full force and effect on, against or in favour of the Transferee Company and may be enforced as fully and effectually as if, instead of the respective Transferor Companies, the Transferee Company had been a party or beneficiary or obligor thereto. If the Transferee Company enters into and/or issues and/or executes deeds, writings or confirmations or enters into any tripartite arrangements, confirmations or novations, the respective Transferor Companies will, if necessary, also be party to such documents in order to give formal effect to the provisions of this Scheme, if so required. In relation to the same, any procedural requirements required to be fulfilled solely by the concerned Transferor Companies (and not by any of its successors), shall be fulfilled by the Transferee Company as if it is the duly constituted attorney of the respective Transferor Companies;

(h) any pending suits/appeals, all legal, taxation or other proceedings including before any statutory or quasi-judicial authority, court or tribunal or other proceedings of whatsoever nature relating to the respective Transferor Companies, whether by or against the Transferor Companies, whether pending on the Appointed Date or which may be instituted any time in the future, shall not abate, be discontinued or in any way prejudicially affected by reason of the amalgamation of the Transferor Companies or of anything contained in this Scheme, but the proceedings shall continue and any prosecution shall be enforced by or against the Transferee Company in the same manner and to the same extent as would or might have been continued, prosecuted and/or enforced by or against the respective Transferor Companies, as if this Scheme had not been implemented;

(i) all debts, liabilities, contingent liabilities, duties and obligations, secured or unsecured of every kind, nature and description whatsoever and howsoever arising, whether provided for or not in the books of account or disclosed in the balance sheets of each of the Transferor Companies shall be deemed to be the debts, liabilities, contingent liabilities, duties, and obligations of the Transferee Company, and the Transferee Company shall, and undertakes to meet, discharge and satisfy the same in terms of their respective terms and conditions, if any. All loans raised and used and all debts, duties, undertakings, liabilities and obligations incurred or undertaken by the respective Transferor Companies after the Appointed Date and prior to the Effective Date, shall also be deemed to have been raised, used, incurred

or undertaken for and on behalf of the Transferee Company and, to the extent they are outstanding on the Effective Date, shall, upon the coming into effect of this Scheme, pursuant to the provisions of Sections 230 to 232 of the Act, without any further act, instrument or deed shall stand transferred to and vested in or be deemed to have been transferred to and vested in the Transferee Company and shall become the debt, duties, undertakings, liabilities and obligations of the Transferee Company which shall meet, discharge and satisfy the same;

(j) The Transferee Company shall be entitled to operate all bank accounts, realise all monies and complete and enforce all pending contracts and transactions in the name of the respective Transferor Companies to the extent necessary until the transfer of the rights and obligations of each of the Transferor Companies to the Transferee Company under the Scheme is formally accepted and completed by the parties concerned. For avoidance of doubt, it is hereby clarified that all cheques and other negotiable instruments, payment orders received and presented for encashment which are in the name of the respective Transferor Companies after the Effective Date, shall be accepted by the bankers of the Transferee Company and credited to the accounts of the Transferee Company, if presented by the Transferee Company. Similarly, the banker of the Transferee Company shall honour all cheques issued by the respective Transferor Companies for payment after the Effective Date;

(k) all letters of intent, requests for proposal, pre-qualifications, bid acceptances, tenders, and other instruments of whatsoever nature to which the respective Transferor Companies are a party to or to the benefit of which the Transferor Companies may be eligible, shall remain in full force and effect against or in favour of the Transferee Company and may be enforced as fully and effectually as if, instead of the respective Transferor Companies, the Transferee Company had been a party or beneficiary or obligee thereto;

(l) all the staff and employees of each of the Transferor Companies, if any, who are in such employment as on the Effective Date shall become, and be deemed to have become, the staff and employees of the Transferee Company, without any break or interruption in their services and on the same terms and conditions (and which are not less favourable than those) on which they are engaged by the respective Transferor Companies as on the Effective Date. The Transferee Company further agrees that for the purpose of payment of any retirement benefit/compensation, such immediate uninterrupted past services with the respective Transferor Companies, shall also be taken into account. With regard to provident fund, gratuity, superannuation, leave encashment and any other special scheme or benefits created or existing for the benefit of such employees of the Transferor Companies, the Transferee Company shall stand substituted for the respective Transferor Companies for all purposes whatsoever, upon this Scheme becoming effective, including with regard to the obligation to make contributions to the relevant authorities, such as the regional provident fund commissioner or to such other funds maintained by the respective Transferor Companies, in accordance with the provisions of Applicable Laws or otherwise. It is hereby clarified that upon this Scheme becoming effective, the aforesaid benefits or schemes shall continue to be provided to the transferred employees and the services of all the transferred employees of the respective Transferor Companies for such purpose shall be

treated as having been continuous;

(m) with regard to any provident fund, gratuity fund, pension, superannuation fund or other special fund created or existing for the benefit of such employees of the Transferor Companies, if any, it is the aim and intent of the Scheme that all the rights, duties, powers and obligations of the respective Transferor Companies in relation to such schemes or funds shall become those of the Transferee Company. Upon the Scheme becoming effective, the Transferee Company shall stand substituted for each of the Transferor Companies for all purposes whatsoever relating to the obligation to make contributions to the said funds in accordance with the provisions of such schemes or funds in the respective trust deeds or other documents. Any existing provident fund, gratuity fund and superannuation fund trusts created by the respective Transferor Companies for its employees shall be continued for the benefit of such employees on the same terms and conditions until such time that they are transferred to the relevant funds of the Transferee Company. It is clarified that the services of all employees of the respective Transferor Companies transferred to the Transferee Company will be treated as having been continuous and uninterrupted for the purpose of the aforesaid schemes or funds. Without prejudice to the aforesaid, the Board of the Transferee Company, if it deems fit and subject to Applicable Laws, shall be entitled to: (i) retain separate trusts or funds within the Transferee Company for the erstwhile fund(s) of the respective Transferor Companies; or (ii) merge the pre-existing fund of the respective Transferor Companies with other similar funds of the Transferee Company;

(n) The Transferee Company agrees that for the purpose of payment of any compensation, gratuity and other terminal benefits, the past services of the employees with the respective Transferor Companies, if any, as the case may be, shall also be taken into account, and agrees and undertakes to pay the same as and when payable;

(o) all trademarks, trade names, service marks, copyrights, logos, corporate names, brand names, domain names and all registrations, applications and renewals in connection therewith, and software and all website content (including text, graphics, images, audio, video and data), trade secrets, confidential business information and other proprietary information, if any, shall stand transferred to and vested in the Transferee Company;

(p) all registrations, goodwill and licenses, appertaining to each of the Transferor Companies, if any, shall transferred to and vested in the Transferee Company;

(q) all taxes (including but not limited to advance tax, tax deducted at source, minimum alternate tax, withholding tax, banking cash transaction tax, value added tax, sales tax, service tax, goods and services tax, customs, duties, etc.), including any interest, penalty, surcharge and cess, if any, payable by or refundable to the concerned Transferor Companies, including all or any refunds or claims shall be treated as the tax liability or refunds/claims, as the case may be, of the Transferee Company, and any tax incentives, advantages, privileges, exemptions, credits, holidays, remissions, reductions etc., as would have been available to the respective Transferor Companies, shall pursuant to this Scheme becoming effective, be

available to the Transferee Company;

(r) all approvals, allotments, consents, concessions, clearances, credits, awards, sanctions, exemptions, subsidies, registrations, no-objection certificates, permits, quotas, rights, entitlements, authorisation, pre-qualifications, bid acceptances, tenders, licenses (including the licenses granted by any governmental, statutory or regulatory bodies for the purpose of carrying on its business or in connection therewith), permissions and certificates of every kind and description whatsoever in relation to the respective Transferor Companies, or to the benefit of which the respective Transferor Companies may be eligible/entitled, and which are subsisting or having effect immediately before the Effective Date, shall be in full force and effect in favour of the Transferee Company and may be enforced as fully and effectually as if, instead of the Transferor Companies, the Transferee Company had been a party or beneficiary or obligor thereto. It is hereby clarified that if the consent of any third party or authority is required to give effect to the provisions of this Clause, the said third party or authority shall make and duly record the necessary substitution/endorsement in the name of the Transferee Company pursuant to the sanction of this Scheme by the Competent Authority, and upon this Scheme becoming effective in accordance with the terms hereof. For this purpose, the Transferee Company shall file appropriate applications/documents with relevant authorities concerned for information and record purposes;

(s) benefits of any and all corporate approvals as may have already been taken by the respective Transferor Companies, whether being in the nature of compliances or otherwise, including without limitation approvals under Sections 42, 62(1)(a), 180, 185, 186, 188 etc., of the Act, read with the rules and regulations made thereunder, shall stand transferred to the Transferee Company and the said corporate approvals and compliances shall be deemed to have been taken/complied with by the Transferee Company; it being clarified that if any such resolutions have any monetary limits approved subject to the provisions of the Act and of any other applicable statutory provisions, then the said limits, as are considered necessary by the Board of the Transferee Company, shall be added to the limits, if any, under the like resolutions passed by the Transferee Company;

(t) all bank accounts operated or entitled to be operated by each of the Transferor Companies shall be deemed to have transferred and shall stand transferred to the Transferee Company and names of the respective Transferor Companies shall be substituted by the name of the Transferee Company in the bank's records;

(u) all the property, assets and liabilities of the respective Transferor Companies shall be transferred to the Transferee Company as appearing in the books of account of the respective Transferor Companies at the close of business of the day immediately preceding the Appointed Date;

(v) all the benefits under the various incentive schemes and policies that the respective Transferor Companies are entitled to, including tax credits, tax deferral, exemptions and benefits (including sales tax and service tax), subsidies, tenancy rights, liberties, special status and other benefits or privileges enjoyed or conferred upon or held or availed by the respective Transferor Companies and all rights or benefits that have accrued or which may accrue to each of the Transferor

Companies, whether on, before or after the Appointed Date, shall upon this Scheme becoming effective and with effect from the Appointed Date be transferred to and vest in the Transferee Company and all benefits, entitlements and incentives of any nature whatsoever, shall be claimed by the Transferee Company and these shall relate back to the Appointed Date as if the Transferee Company was originally entitled to all benefits under such incentive schemes and or policies;

(w) where any of the debts, liabilities, duties and obligations incurred before the Appointed Date by the respective Transferor Companies, deemed to have been transferred to the Transferee Company by virtue of this Scheme, have been discharged by the respective Transferor Companies after the Appointed Date and prior to the Effective Date, such discharge shall be deemed to have been for and on account of the Transferee Company;

(x) any liabilities, loans, advances and other obligations (including any guarantees, letters of credit, letters of comfort or any other instrument or arrangement which may give rise to a contingent liability in whatever form), if any, due or which may at any time in future become due between the Transferor Companies and the Transferee Company shall, ipso facto, stand discharged and come to an end and there shall be no liability in that behalf on any party and the appropriate effect shall be given in the books of accounts and records of the Transferee Company; and

(y) for the avoidance of doubt and without prejudice to the generality of the foregoing, it is clarified that upon the coming into effect of this Scheme and with effect from the Appointed Date, all consents, permissions, licenses, certificates, clearances, authorities, powers of attorney given by, issued to or executed in favour of the respective Transferor Companies shall stand transferred to the Transferee Company, and the Transferee Company shall be bound by the terms thereof, the obligations and duties thereunder, and the rights and benefits under the same shall be available to the Transferee Company.

1.3. The Transferor Companies and/or the Transferee Company, as the case may be, shall, at any time after this Scheme becoming effective in accordance with the provisions hereof, if so required under Applicable Law or otherwise, do all such acts or things as may be necessary to transfer/obtain the approvals, consents, exemptions, registrations, no-objection certificates, permits, quotas, rights, entitlements, licenses and certificates which were held or enjoyed by each of the Transferor Companies. It is hereby clarified that if the consent of any third party or Governmental Authority, if any, is required to give effect to the provisions of this Clause, the said third party or Governmental Authority shall make and duly record the necessary substitution/endorsement in the name of the Transferee Company pursuant to the sanction of this Scheme by the Competent Authority, and upon this Scheme becoming effective in accordance with the provisions of the Act and with the terms hereof. For this purpose, the Transferee Company shall file appropriate applications/documents with relevant authorities concerned for information and record purposes.

1.4. The Transferee Company shall, under the provisions of this Scheme, be deemed to be authorised to execute any such writings on behalf of each of the Transferor Companies and to carry out or perform all such acts, formalities or compliances referred to above as

may be required in this regard.

1.5. Without prejudice to the other provisions of the Scheme and notwithstanding the vesting of the Transferor Companies into the Transferee Company by virtue of Part II of the Scheme itself, the Transferee Company may, at any time after the coming into effect of this Scheme in accordance with the provisions hereof, if so required, under Applicable Law or otherwise, execute deeds (including deeds of adherence), confirmations or other writings or tripartite arrangements with any party to any contract or arrangement in relation to which the respective Transferor Companies have been a party, including any filings with the regulatory authorities in order to give formal effect to the above provisions and to carry out or perform all such formalities or compliances referred to above on the part of the respective Transferor Companies. The Transferee Company will, if necessary, also be a party to the above.

2. CONDUCT OF BUSINESS UNTIL EFFECTIVE DATE

2.1. Each of the Transferor Companies and the Transferee Company have agreed that during the period between the approval of the Scheme by the respective Boards of the Transferor Companies and the Transferee Company and up to the Effective Date, the business of each of the Transferor Companies and the Transferee Company shall be carried out with reasonable diligence and business prudence in the ordinary course consistent with past practice, in good faith and in accordance with Applicable Law.

2.2. Except by mutual consent of the Board of Directors of the respective Transferor Companies and the Transferee Company, or except as specifically contemplated in this Scheme (including Part II of this Scheme), pending sanction of this Scheme, the Transferor Companies and/or the Transferee Company shall not make any change in their capital structures either by way of any increase, decrease, reduction, reclassification, sub-division or consolidation, re-organisation or in any other manner, which would have the effect of re-organisation of capital of such company(ies).

2.3. With effect from the Appointed Date and up to and including the Effective Date:

(a) each of the Transferor Companies undertake to carry on and shall be deemed to have carried on their respective business activities and stand possessed and shall be deemed to have held and stood possessed of the properties and assets pertaining to each of the Transferor Companies, for and on account of and in trust for the Transferee Company;

(b) each of the Transferor Companies hereby undertake to hold their said assets with utmost prudence in the ordinary course of business until the Effective Date;

(c) all profits and income accruing to the respective Transferor Companies, and losses and expenditure incurred by them (including taxes, if any, accruing or paid in relation to any profits or income), for the period from the Appointed Date based on the accounts of the respective Transferor Companies shall, subject to the Scheme being effective, for all purposes, be treated as the profits, income, losses or expenditure, as the case may be, of the Transferee Company;

(d) all debts, liabilities, loans raised and used, liabilities and obligations incurred,

duties and obligations as on the close of business on the date preceding the Appointed Date, whether or not provided in the books of the respective Transferor Companies which arise or accrue to the respective Transferor Companies on or after the Appointed Date, shall be deemed to be of the Transferee Company;

(e) all assets and properties comprised in the respective Transferor Companies as on the date immediately preceding the Appointed Date, whether or not included in the books of the respective Transferor Companies and all assets and properties relating thereto, which are acquired by the Transferor Companies, on or after the Appointed Date, shall be deemed to be the assets and properties of the Transferee Company; and

(f) any of the rights, powers, authorities, privileges exercised by the respective Transferor Companies shall be deemed to have been exercised by the respective Transferor Companies for and on behalf of, and in trust for the Transferee Company. Similarly, any of the obligations, duties and commitments that have been undertaken or discharged by the respective Transferor Companies shall be deemed to have been undertaken for and on behalf of the Transferee Company.

2.4. With effect from the Effective Date, the Transferee Company shall carry on and shall be authorised to carry on the businesses of the Transferor Companies.

2.5. For the purpose of giving effect to the order passed under Sections 230 – 232 and other applicable provisions of the Act in respect of this Scheme by the Competent Authority, the Transferee Company shall, at any time, pursuant to the order on this Scheme, be entitled to get the recordal of the change in the legal right(s) upon the transfer of the Transferor Companies, in accordance with the provisions of Sections 230 – 232 of the Act. The Transferee Company is and shall always be deemed to have been authorised to execute any pleadings, applications, forms etc., as may be required to remove any difficulties and carry out any formalities or compliance as are necessary for the implementation of this Scheme, pursuant to the sanction of this Scheme by the Competent Authority.

2.6. The Transferee Company shall be entitled, pending the sanction of the Scheme, to apply to the Governmental Authorities and all other agencies, departments and authorities concerned as are necessary under Applicable Law for such consents, approvals and sanctions which the Transferee Company may require to carry on the business of the Transferor Companies.

3. DISSOLUTION OF THE TRANSFEROR COMPANIES

3.1. Upon this Scheme becoming effective, each of the Transferor Companies shall stand dissolved without being wound up, without any further act, instrument or deed.

4. CHANGES IN SHARE CAPITAL

4.1 Upon this Scheme becoming effective, the authorized share capital of each of the Transferor Companies shall stand transferred to and be amalgamated/combined with the authorized share capital of the Transferee Company. The fees or stamp duty, if any, paid by each of the Transferor Companies on their respective authorized share capitals shall

be deemed to have been so paid by the Transferee Company on the combined authorized share capital, and the Transferee Company shall not be required to pay any fee/ stamp duty for the increase of the authorized share capital. The authorised share capital of the Transferee Company will automatically stand increased to that effect by simply filing the requisite forms with the RoC and no separate procedure or instrument or deed shall be required to be followed under the Act.

The words "*The Authorised Share Capital of the Company is Rs. 3,08,00,000/- (Rupees Three Crores Eight Lakhs only) divided into 30,80,000 (Thirty Lakhs Eighty Thousand) Equity Shares of Rs. 10/- (Rupees Ten only) each.*" in Clause V. of the memorandum of association of the Transferee Company shall, upon this Scheme becoming effective, and without any further act, instrument or deed, be replaced by the following clause:

"*V. The Authorised Share Capital of the Company is Rs. 3,67,00,000/- (Rupees Three Crores Sixty Seven Lakhs only) divided into 36,70,000 (Thirty Six Lakhs Seventy Thousand) Equity Shares of Rs. 10/- (Rupees Ten only) each.*"

4.2 The approval of this Scheme by the shareholders of the Transferee Company under Sections 230 to 232 of the Act, whether at a meeting or otherwise, or any dispensation of the same by the Competent Authority, shall be deemed to have been an approval under Section 13, Section 61 and Section 64 or any other applicable provisions under the Act and no further resolution(s) would be required to be separately passed in this regard.

5. PAYMENT OF CONSIDERATION

5.1 Upon coming into effect of this Scheme and in consideration of the amalgamation of each of the Transferor Companies in the Transferee Company, the Transferee Company shall, without any further application, act, instrument or deed, issue and allot to the respective equity shareholders of the Transferor Companies whose names are recorded in the respective register of members as a member of the Transferor Companies on the Record Date fully paid up equity shares, free and clear from all encumbrances together with all rights and benefits attaching thereto in the following ratio of:

(i) 482 (Four Hundred Eighty Two) Transferee Company Shares, credited as fully paid-up, for every 10,000 (Ten Thousand) equity shares of the face value of Rs. 10/- (Rupees Ten only) each fully paid-up held by such member in the First Transferor Company;

(ii) 289 (Two hundred Eighty Nine) Transferee Company Shares, credited as fully paid-up, for every 10,000 (Ten Thousand) equity shares of the face value of Rs. 10/- (Rupees Ten only) each fully paid-up held by such member in the Second Transferor Company;

(iii) 5 (Five) Transferee Company Shares, credited as fully paid-up, for every 13,982 (Thirteen Thousand Nine Hundred Eighty Two) equity shares of the face value of Rs. 10/- (Rupees Ten only) each fully paid-up held by such member in the Third Transferor Company;

(iv) 62 (Sixty Two) Transferee Company Shares, credited as fully paid-up, for every 10,000 (Ten Thousand) equity shares of the face value of Rs. 10/- (Rupees Ten

only) each fully paid-up held by such member in the Fourth Transferor Company;

(v) 2 (Two) Transferee Company Shares, credited as fully paid-up, for every 10,000 (Ten Thousand) equity shares of the face value of Rs. 10/- (Rupees Ten only) each fully paid-up held by such member in the Fifth Transferor Company;

(vi) 2 (Two) Transferee Company Shares, credited as fully paid-up, for every 10,000 (Ten Thousand) equity shares of the face value of Rs. 10/- (Rupees Ten only) each fully paid-up held by such member in the Sixth Transferor Company;

(vii) 2 (Two) Transferee Company Shares, credited as fully paid-up, for every 10,000 (Ten Thousand) equity shares of the face value of Rs. 10/- (Rupees Ten only) each fully paid-up held by such member in the Seventh Transferor Company;

(viii) 3 (Three) Transferee Company Shares, credited as fully paid-up, for every 10,000 (Ten Thousand) equity shares of the face value of Rs. 10/- (Rupees Ten only) each fully paid-up held by such member in the Eighth Transferor Company;

(ix) 3 (Three) Transferee Company Shares, credited as fully paid-up, for every 10,000 (Ten Thousand) equity shares of the face value of Rs. 10/- (Rupees Ten only) each fully paid-up held by such member in the Ninth Transferor Company;

5.2 Upon the new equity shares in the Transferee Company being issued and allotted by it to the respective equity shareholders of the Transferor Companies in terms of Clause 5.1 above (hereinafter referred to as the **"New Equity Shares"**), the equity shares of the Transferor Companies shall be deemed to have been automatically cancelled and be of no effect.

5.3 The New Equity Shares issued pursuant to Clause 5.1 above shall be issued and allotted in physical form.

5.4 In the event that the aggregate number of the New Equity Shares to be issued by the Transferee Company to the equity shareholders of the Transferor Companies results in a fraction of shares, the Board of the Transferee Company may at their discretion round-off such fraction to the nearest whole number, and thereupon shall issue and allot New Equity Shares to the shareholders of the Transferor Companies.

5.5 The New Equity Shares issued and allotted by the Transferee Company, in terms of Clause 5.1 above, shall be subject to the provisions of the Memorandum and Articles of Association of the Transferee Company and shall rank pari passu in all respects with the then existing equity shares of the Transferee Company after the Effective Date including in respect of dividend, if any, that may be declared by the Transferee Company on or after the Effective Date.

5.6 It is clarified that the issue and allotment of New Equity Shares by the Transferee Company to the respective equity shareholders of the Transferor Companies as provided in the Scheme, is an integral part thereof and shall be deemed to have been carried out without requiring any further act on the part of the Transferee Company or

its equity shareholders and as if the procedure laid down under Section 62 or any other applicable provisions of the Act, as may be applicable, and such other statues and regulations as may be applicable were duly complied with.

6. ACCOUNTING TREATMENT IN THE BOOKS OF THE TRANSFEREE COMPANY

6.1 The amalgamation will be accounted in accordance with "Pooling of Interest Method" prescribed by Accounting Standard (AS) 14.

6.2 All the assets, liabilities and reserves in the books of the Transferor Companies shall stand transferred to and vested in the Transferee Company pursuant to the Scheme and shall be recorded by the Transferee Company at their carrying amounts as appearing in the books of the Transferor Companies, on the Appointed Date.

6.3 The Transferee Company shall credit to its share capital account, the aggregate face value of the new shares issued by it pursuant to Clause 5.1 of this Scheme.

6.4 Upon coming into effect of this Scheme, the surplus/deficit, if any, of the net value of assets, liabilities and reserves of the Transferor Companies acquired and recorded by the Transferee Company over the sum of the face value of the new shares on merger issued and allotted shall be adjusted in "Capital Reserve Account" or "Goodwill" in the financial statements of the Transferee Company.

6.5 Inter – Company transactions and balances including loans, advances, receivables or payable inter se amongst the Transferor Companies and the Transferee Company as appearing in their books of accounts, if any, shall stand cancelled.

In case of difference in accounting policies between the Transferor Companies and the Transferee Company, the impact of the same till Appointed Date of amalgamation will be quantified and adjusted in the reserves of the Transferee Company to ensure that the financial statements of the Transferee Company reflect the true financial position on the basis of consistent accounting policies.

7. COMPLIANCE WITH LAWS

7.1 Part II of this Scheme is presented and drawn up to comply with the provisions/requirements of Sections 230 - 232 of the Act, for the purpose of the merger of each of the Transferor Companies with the Transferee Company.

7.2 The amalgamation of the Transferor Companies with the Transferee Company in accordance with Part II of this Scheme will be in compliance with the provisions of Section 2(1B) of the IT Act, such that:

(a) all the properties of the respective Transferor Companies, immediately before the amalgamation, shall become the property of the Transferee Company, by virtue of this amalgamation;

(b) all the liabilities of the respective Transferor Companies, immediately before the amalgamation, shall become the liabilities of the Transferee Company, by virtue of

this amalgamation; and

(c) shareholders holding not less than three-fourths in value of the shares in each of the Transferor Companies will become shareholders of the Transferee Company by virtue of the amalgamation.

7.3 Part II of this Scheme has been drawn up to comply with the conditions relating to "amalgamation" as specified under the tax laws, including Section 2 (1B) and other relevant sections of the IT Act. If any terms or provisions of Part II of the Scheme are found to be or interpreted to be inconsistent with any of the said provisions at a later date, whether as a result of any amendment of law or any judicial or executive interpretation or for any other reason whatsoever, the aforesaid provisions of the IT Act shall prevail. Part II of the Scheme shall then stand modified to the extent deemed necessary to comply with the said provisions. Such modification will however not affect other parts of the Scheme. The power to make such amendments as may become necessary shall vest with the Board of Directors of the Transferor Companies and the Transferee Company, which power shall be exercised reasonably in the best interests of the companies concerned and their stakeholders.

7.4 Upon this Scheme becoming effective, the Transferee Company is expressly permitted to prepare and/or revise their financial statements and returns along with prescribed forms, filings and annexures under the IT Act (including for minimum alternate tax purposes and tax benefits), goods and service tax law and other tax laws, and to claim refunds and/or credits for taxes paid (including minimum alternate tax), and to claim tax benefits under the IT Act, etc., and for matters incidental thereto, if required to give effect to the provisions of Part II of this Scheme. The order of the Competent Authority sanctioning the Scheme shall be deemed to be an order of the Competent Authority permitting the Transferee Company to prepare and/or revise its financial statements and books of accounts and no further act shall be required to be undertaken by the Transferee Company.

8. CONSEQUENTIAL MATTERS RELATING TO TAX

8.1 All tax assessment proceedings/appeals of whatsoever nature by or against the respective Transferor Companies pending and/or arising at the Appointed Date and relating to the Transferor Companies shall be continued and/or enforced until the Effective Date by the Transferor Companies. In the event of the respective Transferor Companies failing to continue or enforce any proceeding/appeal, the same may be continued or enforced by the Transferee Company, at the cost of the Transferee Company. As and from the Effective Date, the tax proceedings shall be continued and enforced by or against the Transferee Company in the same manner and to the same extent as would or might have been continued and enforced by or against the Transferor Companies.

8.2 Further, the aforementioned proceedings shall not abate or be discontinued nor be in any way prejudicially affected by reason of the amalgamation of the Transferor Companies with the Transferee Company or anything contained in Part II of the Scheme.

8.3 Upon the Scheme becoming effective, any advance tax, self-assessment tax, minimum

alternate tax and/or TDS credit available or vested with the respective Transferor Companies, including any taxes paid and taxes deducted at source and deposited by the Transferee Company on inter se transactions during the period between the Appointed Date and the Effective Date shall be treated as advance tax paid by the Transferee Company and shall be available to the Transferee Company for set-off against its liability under the IT Act and any excess tax so paid shall be eligible for refund together with interest.

9. SAVING OF CONCLUDED TRANSACTIONS

9.1 The transfer of assets, properties and liabilities and the continuance of proceedings by or against the respective Transferor Companies under Clause 1.2 of Part II of the Scheme above shall not affect any transaction or proceedings already concluded by the Transferor Companies on and after the Appointed Date until the Effective Date, to the end and intent that the Transferee Company accept and adopt all acts, deeds and things done and executed by the respective Transferor Companies in respect thereto as done and executed on behalf of the Transferee Company.

PART III

GENERAL TERMS AND CONDITIONS

1. SEQUENCE OF EVENTS

Upon the sanction of this Scheme and upon this Scheme becoming effective, the following shall be deemed to have occurred and become effective and operative only in the sequence and in the order set out below:

1.1. filing of certified copies of the order(s) of the Competent Authority with the RoC by each of the Transferor Companies and the Transferee Company pursuant to which amalgamation of the Transferor Companies into and with the Transferee Company in accordance with Part II of this Scheme shall become effective;

1.2. transfer of the authorised share capital of each of the Transferor Companies to the Transferee Company and consequential increase in the authorised share capital of the Transferee Company in accordance with Part II of this Scheme;

1.3. issue and allotment of New Equity Shares of the Transferee Company to the respective equity shareholders of the Transferor Companies in accordance with Part II of this Scheme; and

1.4. dissolution of the Transferor Companies without winding up.

2. DIVIDENDS

2.1. The Companies shall be entitled to declare and pay dividends, whether interim and/or final, to their respective shareholders prior to the Effective Date, but only in the ordinary course of business.

2.2. It is clarified that the aforesaid provisions in respect of declaration of dividends are enabling provisions only and shall not be deemed to confer any right on any shareholder of the respective Companies to demand or claim any dividends which, subject to the provisions of the Act, shall be entirely at the discretion of the respective Boards of Directors of the Companies, and if applicable in accordance with the provisions of the Act, be subject to the approval of the shareholders of the respective Companies.

3. INTERPRETATION

3.1. If any terms or provisions of this Scheme are found to be or interpreted to be inconsistent with any provisions of Applicable Law at a later date, whether as a result of any amendment of Applicable Law or any judicial or executive interpretation or for any other reason whatsoever, the provisions of the Applicable Law shall prevail. Subject to obtaining the sanction of the Competent Authority, if necessary, this Scheme shall then stand modified to the extent determined necessary to comply with the said provisions. Such modification will, however, not affect other parts of this Scheme. Notwithstanding the other provisions of this Scheme, the power to make such amendments/modifications as may become necessary, whether before or after the Effective Date, shall, subject to obtaining the sanction of the Competent Authority if necessary, vest with the Board of Directors of the respective Companies, which power shall be exercised reasonably in the best interests of the Companies and their respective shareholders.

4. APPLICATION TO THE COMPETENT AUTHORITY

4.1 The Companies shall, with all reasonable dispatch, make all necessary applications and petitions including joint applications and joint petitions to the Competent Authority for sanctioning this Scheme under Sections 230 to 232 of the Act and other applicable provisions of the Act, and obtaining such other approvals, as required under Applicable Law.

4.2 The Companies shall be entitled, pending the effectiveness of the Scheme, to apply to any Governmental Authority, if required, under any Applicable Law for such consents and approvals, which the respective Companies may require to effect the transactions contemplated under the Scheme, in any case subject to the terms as may be mutually agreed between the relevant Companies.

5. MODIFICATION OR AMENDMENTS TO THE SCHEME

5.1. Subject to Clause 5.4 of Part III, the Companies may mutually, by their respective Board of Directors or such other person or persons, as the respective Board of Directors, may authorize, may make and/or consent to (i) any modifications / amendments to the Scheme (including but not limited to the terms and conditions thereof); or (ii) to any conditions or limitations that the Competent Authority or any other Governmental Authority may deem fit to direct or impose; or (iii) modification/ amendment which may otherwise be considered necessary, desirable or appropriate by them. No further approval of the shareholders or creditors of any of the Companies shall be necessary for giving effect to the provisions of this Clause.

5.2. The Companies, by their respective Board of Directors or such other person or persons, as the respective Board of Directors may authorize (including any committee or sub-committee thereof), shall be authorised to take all such steps as may be necessary, desirable or proper to resolve any doubts, difficulties or questions whether by reason of any directive or orders of any authorities or otherwise howsoever arising out of, or under, or by virtue of the Scheme and/or any matter concerned or connected therewith.

5.3. For the purpose of giving effect to this Scheme or to any modifications or amendments or additions thereto, the respective Board of Directors of the Companies may jointly give and are hereby jointly authorised to determine and give all such directions as are necessary including directions for settling or removing any question of doubt or difficulty that may arise and such determination or directions, as the case may be, shall be binding on all the Companies, in the same manner as if the same were specifically incorporated in this Scheme.

5.4. Notwithstanding anything stated in Clauses 5.1, 5.2, and 5.3 of Part III hereinabove, no amendments or changes to the Scheme shall be carried out or be permissible unless and until the same are approved by the Competent Authority before which the Companies have filed the petition for sanctioning the Scheme.

6. CONDITIONALITY TO EFFECTIVENESS OF THE SCHEME

6.1. The Scheme is conditional and subject to:

6.1.1. the Scheme being approved by the requisite majority of each classes of the members and/or creditors (where applicable) of the respective Companies in accordance with the Act or dispensation having being received from the Competent Authority in relation to obtaining such approval from the members and/or creditors or any Applicable Law permitting the respective Companies not to convene the meetings of its members and/or its creditors;

6.1.2. the approval of the Scheme by the Competent Authority in terms of Sections 230-232 of the Act; and

6.1.3. certified copies of the order(s) of the Competent Authority, sanctioning the Scheme, being filed with the RoC, by the Companies.

7. SEVERABILITY

7.1. If any part of this Scheme is invalid, ruled illegal by any Court of competent jurisdiction, or unenforceable under present or future laws, then it is the intention of the Companies that such part shall be severable from the remainder of the Scheme. Further, if the deletion of such part of this Scheme may cause this Scheme to become materially adverse to the Companies, then in such case the Companies shall attempt to bring about a modification in the Scheme, as will best preserve for the Companies the benefits and obligations of the Scheme, including but not limited to such part.

7.2. If any part of this Scheme is found to be unworkable for any reason whatsoever, the same shall not, subject to the mutual agreement of the Companies, affect the validity or implementation of the other parts and/or provisions of this Scheme.

8. **SHAREHOLDERS' APPROVAL**

8.1. It is hereby clarified that if pursuant to this Scheme any action is to be taken by any of the Companies which requires the consent or approval of shareholders, then for such purposes, the consent or approval of the shareholders to the Scheme shall be deemed to be sufficient, and no further resolution of the shareholders would be required to be separately passed.

9. **NO CAUSE OF ACTION**

9.1. No third party claiming to have acted or changed its position in anticipation of this Scheme taking effect, shall get any cause of action against the respective Companies or their respective directors or officers, if the Scheme does not take effect or is withdrawn, amended or modified for any reason whatsoever.

10. **EFFECT OF NON-RECEIPT OF APPROVALS**

10.1. In the event of any of the approvals or conditions enumerated in the Scheme not being obtained or complied, or for any other reason, this Scheme cannot be implemented, then the respective Board of Directors of the Companies shall mutually waive such conditions as they consider appropriate to give effect, as far as possible, to this Scheme and failing such mutual agreement, the Scheme shall become null and void and the Companies shall bear and pay their respective costs, charges and expenses in connection with this Scheme.

11. **COSTS, CHARGES AND EXPENSES**

11.1. All legal, accounting, professional and advisory fees and all costs, charges, transfer premiums, stamp duty in relation to or in connection with or incidental to the Scheme or the implementation thereof shall be borne and paid by the Transferee Company.

Annexure "B"

J.M. PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS

B – 705, 7TH FLOOR, NIRMAN COMPLEX, OPP: HAVMOR RESTAURANT,
NAVRANGPURA, AHMEDABAD – 380 009. PHONE: 26563949, 26569093
E-mail: jvparikh@yahoo.com

CERTIFICATE

TO WHOM SO EVER IT MAY CONCERN

We have gone through the books of accounts and other records of Shaligram Investments Private Limited ("the Company") having its registered office at Ganesh Corporate House,100 Feet Hebatpur - Thaltej Road, Near Sola Bridge, off S.G. Highway, Ahmedabad - 380054. We hereby certify that freehold property, leasehold property and other fixed assets held by the Company as at 30thApril, 2023 are as per attached **Annexure 1.**

This certificate has been issued for submission with Hon'ble National Company Law Tribunal, Ahmedabad Bench in connection with the proposed Scheme of Amalgamation of Madhurkamal (Thaltej) Complex Private Limited and Madhav (Thaltej) Complex Private Limited and Mandar (Thaltej) Complex Private Limited and Vyom Realty Private Limited and Shushna Complex Private Limited and Viraj Complex Private Limited and Shreekala Infrastructure Private Limited and Siddhivinayak Securities Private Limited and Shaligram Investments Private Limited with Ganeshsagar Infrastructure Private Limited under Section 230 to 232 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013.

This certificate is issued on specific request of the Company's management and we have relied on the unaudited books of accounts and other information and explanations given to us.

We owe no financial or other liability in respect of this certificate to anyone except our client.

FOR J M PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS
FIRM REGISTRATION NO. 118007W

PLACE: AHMEDABAD.
DATE: 05/06/2023

J. M. PARIKH & ASSOCIATES * CHARTERED ACCOUNTANTS * Mem. No. 033811 AHMEDABAD

Jatin Parikh

JATIN PARIKH
PARTNER
MEMBERSHIP NO.033811
UDIN: 23033811BGXGZX8157

J. M. PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS
7th Floor, B/705, Nirman Complex,
Opp. Havmor Restaurant,
Navrangpura, AHMEDABAD-9.

J.M. PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS

B – 705, 7TH FLOOR, NIRMAN COMPLEX, OPP: HAVMOR RESTAURANT,
NAVRANGPURA, AHMEDABAD – 380 009. PHONE: 26563949, 26569093
E-mail: jvparikh@yahoo.com

Shaligram Investments Private Limited

Annexure 1

A. **Part I** : Short description of Freehold property and movable property of the company as at 30th April 2023

- Freehold Property – NIL
- Movable Property:

Particulars	Amount (Rs.)
Current Assets	
Cash and Bank	1,35,721
Total	**1,35,721**

B. **Part II :** Short description of Leasehold property of the company as at 30th April 2023

- NIL

C. **PART III:** Short description of all stocks, shares, debenture, and other changes in action as at 30th April 2023

Sr. No.	Name of the Company in which Investments made	Description of Investment	Amount of Investment
1.	GANESH PLANTATIONS LTD	Equity Shares	13,73,000
Total			**13,73,000**

J. M. PARIKH & ASSOCIATES * CHARTERED ACCOUNTANTS * Mem. No. 033811 AHMEDABAD

J.M. PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS

B – 705, 7TH FLOOR, NIRMAN COMPLEX, OPP: HAVMOR RESTAURANT,
NAVRANGPURA, AHMEDABAD – 380 009. PHONE: 26563949, 26569093
E-mail: jvparikh@yahoo.com

CERTIFICATE

TO WHOM SO EVER IT MAY CONCERN

We have gone through the books of accounts and other records of Siddhivinayak Securities Private Limited ("the Company") having its registered office at Ganesh Corporate House,100 Feet Hebatpur - Thaltej Road, Near Sola Bridge, off S.G. Highway, Ahmedabad - 380054. We hereby certify that freehold property, leasehold property and other fixed assets held by the Company as at 30thApril, 2023 are as per attached **Annexure 1.**

This certificate has been issued for submission with Hon'ble National Company Law Tribunal, Ahmedabad Bench in connection with the proposed Scheme of Amalgamation of Madhurkamal (Thaltej) Complex Private Limited and Madhav (Thaltej) Complex Private Limited and Mandar (Thaltej) Complex Private Limited and Vyom Realty Private Limited and Shushna Complex Private Limited and Viraj Complex Private Limited and Shreekala Infrastructure Private Limited and Siddhivinayak Securities Private Limited and Shaligram Investments Private Limited with Ganeshsagar Infrastructure Private Limited under Section 230 to 232 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013.

This certificate is issued on specific request of the Company's management and we have relied on the unaudited books of accounts and other information and explanations given to us.

We owe no financial or other liability in respect of this certificate to anyone except our client.

FOR J M PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS
FIRM REGISTRATION NO. 118007W

PLACE: AHMEDABAD.
DATE: 05/06/2023

J. M. PARIKH & ASSOCIATES * CHARTERED ACCOUNTANTS * Mem. No. 033811 AHMEDABAD

Jatin Parikh

JATIN PARIKH
PARTNER
MEMBERSHIP NO.033811
UDIN: 23033811BGXGZW5549

J. M. PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS
7th Floor, B/705, Nirman Complex,
Opp. Havmor Restaurant,
Navrangpura, AHMEDABAD-9.

J.M. PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS

B – 705, 7TH FLOOR, NIRMAN COMPLEX, OPP: HAVMOR RESTAURANT,
NAVRANGPURA, AHMEDABAD – 380 009. PHONE: 26563949, 26569093
E-mail: jvparikh@yahoo.com

Siddhivinayak Securities Private Limited

Annexure 1

A. **Part I** : Short description of Freehold property and movable property of the company as at 30th April 2023

- Freehold Property – NIL
- Movable Property:

Particulars	Amount (Rs.)
Current Assets	
Cash and Bank	3,18,385
Total	**3,18,385**

B. **Part II :** Short description of Leasehold property of the company as at 30th April 2023

- NIL

C. **PART III:** Short description of all stocks, shares, debenture, and other changes in action as at 30th April 2023

Sr. No.	Name of the Company in which Investments are made	Description of Investments	Amount of Investment
1.	GANESH PLANTATIONS LTD	Equity Shares	13,73,000/-
2.	MAHESHWARI (THALTEJ) COMPLEX PVT LTD	Equity Shares	46,73,87,900/-
Total			**46,87,60,900/-**

J. M. PARIKH & ASSOCIATES * CHARTERED ACCOUNTANTS * Mem. No. 083811 AHMEDABAD

J.M. PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS

B – 705, 7TH FLOOR, NIRMAN COMPLEX, OPP: HAVMOR RESTAURANT,
NAVRANGPURA, AHMEDABAD – 380 009. PHONE: 26563949, 26569093
E-mail: jvparikh@yahoo.com

CERTIFICATE

TO WHOM SO EVER IT MAY CONCERN

We have gone through the books of accounts and other records of Shreekala Infrastructure Private Limited ("the Company") having its registered office at 30, Maniratnam Row House Part-2, P&T Colony Road, Vasna, Ahmedabad - 380007. We hereby certify that freehold property, leasehold property and other fixed assets held by the Company, if any, as at 30th April, 2023 are as per attached **Annexure 1.**

This certificate has been issued for submission with Hon'ble National Company Law Tribunal, Ahmedabad Bench in connection with the proposed Scheme of Amalgamation of Madhurkamal (Thaltej) Complex Private Limited and Madhav (Thaltej) Complex Private Limited and Mandar (Thaltej) Complex Private Limited and Vyom Realty Private Limited and Shushna Complex Private Limited and Viraj Complex Private Limited and Shreekala Infrastructure Private Limited and Siddhivinayak Securities Private Limited and Shaligram Investments Private Limited with Ganeshsagar Infrastructure Private Limited under Section 230 to 232 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013.

This certificate is issued on specific request of the Company's management and we have relied on the unaudited books of accounts and other information and explanations given to us.

We owe no financial or other liability in respect of this certificate to anyone except our client.

FOR J M PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS
FIRM REGISTRATION NO. 118007W

J. M. PARIKH & ASSOCIATES * CHARTERED ACCOUNTANTS * Mem. No. 033811 AHMEDABAD

PLACE: AHMEDABAD.
DATE: 05/06/2023

JATIN PARIKH
PARTNER
MEMBERSHIP NO.033811
UDIN: 23033811BGXGZV7463

J. M. PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS
7th Floor, B/705, Nirman Complex,
Opp. Havmor Restaurant,
Navrangpura, AHMEDABAD-9.

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

J.M. PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS

B – 705, 7TH FLOOR, NIRMAN COMPLEX, OPP: HAVMOR RESTAURANT,
NAVRANGPURA, AHMEDABAD – 380 009. PHONE: 26563949, 26569093
E-mail: jvparikh@yahoo.com

Shreekala Infrastructure Private Limited

Annexure 1

A. **Part I** : Short description of Freehold property and movable property of the company as at 30th April 2023

- Freehold Property – NIL
- Movable Property:

Particulars	Amount (Rs.)
Current Assets	
Loans and Advances	48,34,31,261
Cash and Bank	4,27,675
Total	**48,38,58,936**

B. **Part II :** Short description of Leasehold property of the company as at 30th April 2023

- NIL

C. **PART III:** Short description of all stocks, shares, debenture, and other changes in action as at 30th April 2023

- NIL

J. M. PARIKH & ASSOCIATES * CHARTERED ACCOUNTANTS * Mem. No. 033811 AHMEDABAD

J.M. PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS

B – 705, 7TH FLOOR, NIRMAN COMPLEX, OPP: HAVMOR RESTAURANT,
NAVRANGPURA, AHMEDABAD – 380 009. PHONE: 26563949, 26569093
E-mail: jvparikh@yahoo.com

CERTIFICATE

TO WHOM SO EVER IT MAY CONCERN

We have gone through the books of accounts and other records of Viraj Complex Private Limited ("the Company") having its registered office at Ganesh Corporate House, 100 Ft. Hebatpur - Thaltej Road, Near Sola Bridge, Off S. G. Highway, Ahmedabad - 380054.We hereby certify that freehold property, leasehold property and other fixed assets held by the Company, if any, as at 30th April, 2023 are as per attached **Annexure 1.**

This certificate has been issued for submission with Hon'ble National Company Law Tribunal, Ahmedabad Bench in connection with the proposed Scheme of Amalgamation of Madhurkamal (Thaltej) Complex Private Limited and Madhav (Thaltej) Complex Private Limited and Mandar (Thaltej) Complex Private Limited and Vyom Realty Private Limited and Shushna Complex Private Limited and Viraj Complex Private Limited and Shreekala Infrastructure Private Limited and Siddhivinayak Securities Private Limited and Shaligram Investments Private Limited with Ganeshsagar Infrastructure Private Limited under Section 230 to 232 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013.

This certificate is issued on specific request of the Company's management and we have relied on the unaudited books of accounts and other information and explanations given to us.

We owe no financial or other liability in respect of this certificate to anyone except our client.

FOR J M PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS
FIRM REGISTRATION NO. 118007W

J. M. PARIKH & ASSOCIATES * Mem. No. 033811 AHMEDABAD * CHARTERED ACCOUNTANTS

Jatin Parikh

PLACE: AHMEDABAD.
DATE: 05/06/2023

JATIN PARIKH
PARTNER
MEMBERSHIP NO.033811
UDIN: 23033811BGXGZU7500

J. M. PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS
7th Floor, B/705, Nirman Complex,
Opp. Havmor Restaurant,
Navrangpura, AHMEDABAD-9.

J.M. PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS

B – 705, 7TH FLOOR, NIRMAN COMPLEX, OPP: HAVMOR RESTAURANT,
NAVRANGPURA, AHMEDABAD – 380 009. PHONE: 26563949, 26569093
E-mail: jvparikh@yahoo.com

Viraj Complex Private Limited

Annexure 1

A. **Part I** : Short description of Freehold property and movable property of the company as at 30th April 2023

- Freehold Property – NIL
- Movable Property:

Particulars	Amount (Rs.)
Current Assets	
Loans and Advances	2,32,49,000
Cash and Bank	2,04,526
Total	**2,34,53,526**

B. **Part II** : Short description of Leasehold property of the company as at 30th April 2023

- NIL

C. **PART III:** Short description of all stocks, shares, debenture, and other changes in action as at 30th April 2023

- NIL

J. M. PARIKH & ASSOCIATES * Mem. No. 033811 AHMEDABAD * CHARTERED ACCOUNTANTS

J.M. PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS

B – 705, 7TH FLOOR, NIRMAN COMPLEX, OPP: HAVMOR RESTAURANT,
NAVRANGPURA, AHMEDABAD – 380 009. PHONE: 26563949, 26569093
E-mail: jvparikh@yahoo.com

CERTIFICATE

TO WHOM SO EVER IT MAY CONCERN

We have gone through the books of accounts and other records of Shushna Complex Private Limited ("the Company") having its registered office at Ganesh Corporate House, 100 Ft. Hebatpur-Thaltej Road, Near Sola Bridge, Off S. G. Highway, Ahmedabad - 380054. We hereby certify that freehold property, leasehold property and other fixed assets held by the Company, if any, as at 30thApril, 2023 are as per attached **Annexure 1.**

This certificate has been issued for submission with Hon'ble National Company Law Tribunal, Ahmedabad Bench in connection with the proposed Scheme of Amalgamation of Madhurkamal (Thaltej) Complex Private Limited and Madhav (Thaltej) Complex Private Limited and Mandar (Thaltej) Complex Private Limited and Vyom Realty Private Limited and Shushna Complex Private Limited and Viraj Complex Private Limited and Shreekala Infrastructure Private Limited and Siddhivinayak Securities Private Limited and Shaligram Investments Private Limited with Ganeshsagar Infrastructure Private Limited under Section 230 to 232 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013.

This certificate is issued on specific request of the Company's management and we have relied on the unaudited books of accounts and other information and explanations given to us.

We owe no financial or other liability in respect of this certificate to anyone except our client.

FOR J M PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS
FIRM REGISTRATION NO. 118007W

J.M. PARIKH & ASSOCIATES * CHARTERED ACCOUNTANTS * Mem. No. 033811 AHMEDABAD

Jatin Parikh

PLACE: AHMEDABAD.
DATE: 05/06/2023

JATIN PARIKH
PARTNER
MEMBERSHIP NO.033811
UDIN: 23033811BGXGZT7586

J. M. PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS
7th Floor, B/705, Nirman Complex,
Opp. Havmor Restaurant,
Navrangpura, AHMEDABAD-9.

J.M. PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS

B – 705, 7TH FLOOR, NIRMAN COMPLEX, OPP: HAVMOR RESTAURANT,
NAVRANGPURA, AHMEDABAD – 380 009. PHONE: 26563949, 26569093
E-mail: jvparikh@yahoo.com

Shushna Complex Private Limited

Annexure 1

A. **Part I** : Short description of Freehold property and movable property of the company as at 30th April 2023

- Freehold Property – NIL
- Movable Property:

Particulars	Amount (Rs.)
Current Assets	
Loans and Advances	5,50,00,000
Cash and Bank	1,54,249
Total	**5,51,54,249**

B. **Part II :** Short description of Leasehold property of the company as at 30th April 2023

- NIL

C. **PART III:** Short description of all stocks, shares, debenture, and other changes in action as at 30th April 2023

- NIL

J. M. PARIKH & ASSOCIATES * Mem. No. 033811 AHMEDABAD * CHARTERED ACCOUNTANTS

J.M. PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS

B – 705, 7TH FLOOR, NIRMAN COMPLEX, OPP: HAVMOR RESTAURANT,
NAVRANGPURA, AHMEDABAD – 380 009. PHONE: 26563949, 26569093
E-mail: jvparikh@yahoo.com

CERTIFICATE

TO WHOM SO EVER IT MAY CONCERN

We have gone through the books of accounts and other records of Vyom Realty Private Limited ("the Company") having its registered office at Ganesh Corporate House, 100 Ft. Hebatpur-Thaltej Road, Near Sola Bridge, Off S. G. Highway, Ahmedabad - 380054.We hereby certify that freehold property, leasehold property and other fixed assets held by the Company as at 30th April, 2023 are as per attached **Annexure 1.**

This certificate has been issued for submission with Hon'ble National Company Law Tribunal, Ahmedabad Bench in connection with the proposed Scheme of Amalgamation of Madhurkamal (Thaltej) Complex Private Limited and Madhav (Thaltej) Complex Private Limited and Mandar (Thaltej) Complex Private Limited and Vyom Realty Private Limited and Shushna Complex Private Limited and Viraj Complex Private Limited and Shreekala Infrastructure Private Limited and Siddhivinayak Securities Private Limited and Shaligram Investments Private Limited with Ganeshsagar Infrastructure Private Limited under Section 230 to 232 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013.

This certificate is issued on specific request of the Company's management and we have relied on the unaudited books of accounts and other information and explanations given to us.

We owe no financial or other liability in respect of this certificate to anyone except our client.

FOR J M PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS
FIRM REGISTRATION NO. 118007W

J. M. PARIKH & ASSOCIATES CHARTERED ACCOUNTANTS Mem. No. 033811 AHMEDABAD

Jatin Parikh

PLACE: AHMEDABAD.
DATE: 05/06/2023

JATIN PARIKH
PARTNER
MEMBERSHIP NO.033811
UDIN: 23033811BGXGZS5960

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD BENCH

J. M. PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS
7th Floor, B/705, Nirman Complex,
Opp. Havmor Restaurant,
Navrangpura, AHMEDABAD-9.

J.M. PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS

B – 705, 7TH FLOOR, NIRMAN COMPLEX, OPP: HAVMOR RESTAURANT,
NAVRANGPURA, AHMEDABAD – 380 009. PHONE: 26563949, 26569093
E-mail: jvparikh@yahoo.com

Vyom Realty Private Limited

Annexure 1

A. **Part I** : Short description of Freehold property and movable property of the company as at 30thApril 2023

- Freehold Property

Sr. No.	Type of Assets	Location	Unit of Measurement	Area	Amount (Rs.)
1.	Freehold Land	Sub Plot No. 215/1, Shangrila Village, Ghuma, Ahmedabad	Square Meter	418.06	30,20,000

- Movable Property:

Particulars	Amount (Rs.)
Current Assets	
Loans and Advances	8,50,000
Cash and Bank	2,06,707
Total	**10,56,707**

B. **Part II :** Short description of Leasehold property of the company as at 30th April 2023

- NIL

C. **PART III:** Short description of all stocks, shares, debenture, and other changes in action as at 30th April 2023

- NIL

J.M. PARIKH & ASSOCIATES * CHARTERED ACCOUNTANTS * Mem No. 033811 AHMEDABAD

J.M. PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS

B – 705, 7TH FLOOR, NIRMAN COMPLEX, OPP: HAVMOR RESTAURANT,
NAVRANGPURA, AHMEDABAD – 380 009. PHONE: 26563949, 26569093
E-mail: jvparikh@yahoo.com

CERTIFICATE

TO WHOM SO EVER IT MAY CONCERN

We have gone through the books of accounts and other records of Mandar (Thaltej) Complex Private Limited ("the Company") having its registered office at Ganesh Corporate House, 100 Ft. Hebatpur - Thaltej Road, Near Sola Bridge, Off S. G. Highway, Ahmedabad - 380054.We hereby certify that freehold property, leasehold property and other fixed assets held by the Company, if any, as at 30thApril, 2023 are as per attached **Annexure 1.**

This certificate has been issued for submission with Hon'ble National Company Law Tribunal, Ahmedabad Bench in connection with the proposed Scheme of Amalgamation of Madhurkamal (Thaltej) Complex Private Limited and Madhav (Thaltej) Complex Private Limited and Mandar (Thaltej) Complex Private Limited and Vyom Realty Private Limited and Shushna Complex Private Limited and Viraj Complex Private Limited and Shreekala Infrastructure Private Limited and Siddhivinayak Securities Private Limited and Shaligram Investments Private Limited with Ganeshsagar Infrastructure Private Limited under Section 230 to 232 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013.

This certificate is issued on specific request of the Company's management and we have relied on the unaudited books of accounts and other information and explanations given to us.

We owe no financial or other liability in respect of this certificate to anyone except our client.

FOR J M PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS
FIRM REGISTRATION NO. 118007W

J. M. PARIKH & ASSOCIATES * CHARTERED ACCOUNTANTS * Mem. No. 033811 AHMEDABAD

Jatin Parikh

PLACE: AHMEDABAD.
DATE: 05/06/2023

JATIN PARIKH
PARTNER
MEMBERSHIP NO.033811
UDIN: 23033811BGXGZR4297

J. M. PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS
7th Floor, B/705, Nirman Complex,
Opp. Havmor Restaurant,
Navrangpura, AHMEDABAD-9.

J.M. PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS

B – 705, 7TH FLOOR, NIRMAN COMPLEX, OPP: HAVMOR RESTAURANT,
NAVRANGPURA, AHMEDABAD – 380 009. PHONE: 26563949, 26569093
E-mail: jvparikh@yahoo.com

Mandar (Thaltej) Complex Private Limited

Annexure 1

A. **Part I** : Short description of Freehold property and movable property of the company as at 30th April 2023

- Freehold Property – NIL
- Movable Property:

Particulars	Amount (Rs.)
Current Assets	
Loans and Advances	16,16,27,664
Cash and Bank	8,65,888
Total	**16,24,93,552**

B. **Part II :** Short description of Leasehold property of the company as at 30th April 2023

- NIL

C. **PART III:** Short description of all stocks, shares, debenture, and other changes in action as at 30th April 2023

- NIL

J. M. PARIKH & ASSOCIATES * CHARTERED ACCOUNTANTS * Mem. No. 033811 AHMEDABAD

J.M. PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS

B – 705, 7TH FLOOR, NIRMAN COMPLEX, OPP: HAVMOR RESTAURANT,
NAVRANGPURA, AHMEDABAD – 380 009. PHONE: 26563949, 26569093
E-mail: jvparikh@yahoo.com

CERTIFICATE

TO WHOM SO EVER IT MAY CONCERN

We have gone through the books of accounts and other records of Madhav (Thaltej) Complex Private Limited ("the Company") having its registered office at Ganesh Corporate House, 100 Ft. Hebatpur-Thaltej Road, Near Sola Bridge, Off S. G. Highway, Ahmedabad - 380054.We hereby certify that freehold property, leasehold property and other fixed assets held by the Company, if any, as at 30th April, 2023 are as per attached **Annexure 1.**

This certificate has been issued for submission with Hon'ble National Company Law Tribunal, Ahmedabad Bench in connection with the proposed Scheme of Amalgamation of Madhurkamal (Thaltej) Complex Private Limited and Madhav (Thaltej) Complex Private Limited and Mandar (Thaltej) Complex Private Limited and Vyom Realty Private Limited and Shushna Complex Private Limited and Viraj Complex Private Limited and Shreekala Infrastructure Private Limited and Siddhivinayak Securities Private Limited and Shaligram Investments Private Limited with Ganeshsagar Infrastructure Private Limited under Section 230 to 232 of the Companies Act, 2013 and other applicable provisions of the Companies Act, 2013.

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We owe no financial or other liability in respect of this certificate to anyone except our client.

FOR J M PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS
FIRM REGISTRATION NO. 118007W

J. M. PARIKH & ASSOCIATES * CHARTERED ACCOUNTANTS * Mem. No. 033811 AHMEDABAD

Jatin Parikh

PLACE: AHMEDABAD.
DATE: 05/06/2023

JATIN PARIKH
PARTNER
MEMBERSHIP NO.033811
UDIN: 23033811BGXGZQ2719

J. M. PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS
7th Floor, B/705, Nirman Complex,
Opp. Havmor Restaurant,
Navrangpura, AHMEDABAD-9.

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD

J.M. PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS

B – 705, 7TH FLOOR, NIRMAN COMPLEX, OPP: HAVMOR RESTAURANT,
NAVRANGPURA, AHMEDABAD – 380 009. PHONE: 26563949, 26569093
E-mail: jvparikh@yahoo.com

Madhav (Thaltej) Complex Private Limited

Annexure 1

A. Part I : Short description of Freehold property and movable property of the company as at 30th April 2023

- Freehold property - NIL
- Movable Property:

Particulars	Amount (Rs.)
Current Assets	
Loans and Advances	1,93,19,598
Cash and Bank	51,487
Total	**1,93,71,085**

B. Part II : Short description of Leasehold property of the company as at 30th April 2023

- NIL

C. PART III: Short description of all stocks, shares, debenture, and other changes in action as at 30th April 2023

- NIL

J. M. PARIKH & ASSOCIATES * CHARTERED ACCOUNTANTS * Mem. No. 033811 AHMEDABAD

NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD BENCH

J.M. PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS

B – 705, 7TH FLOOR, NIRMAN COMPLEX, OPP: HAVMOR RESTAURANT,
NAVRANGPURA, AHMEDABAD – 380 009. PHONE: 26563949, 26569093
E-mail: jvparikh@yahoo.com

CERTIFICATE

TO WHOM SO EVER IT MAY CONCERN

We have gone through the books of accounts and other records of Madhurkamal (Thaltej) Complex Private Limited ("the Company") having its registered office at Ganesh Corporate House, 100 Ft. Hebatpur - Thaltej Road, Near Sola Bridge, Off S. G. Highway, Ahmedabad - 380054. We hereby certify that freehold property, leasehold property and other fixed assets held by the Company, if any, as at 30th April, 2023 are as per attached **Annexure 1.**

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FOR J M PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS
FIRM REGISTRATION NO. 118007W

J. M. PARIKH & ASSOCIATES * CHARTERED ACCOUNTANTS * Mem. No. 033811 AHMEDABAD

Jatin Parikh

PLACE: AHMEDABAD.
DATE: 05/06/2023

JATIN PARIKH
PARTNER
MEMBERSHIP NO.033811
UDIN: 23033811BGXGZP2668

J. M. PARIKH & ASSOCIATES
CHARTERED ACCOUNTANTS
7th Floor, B/705, Nirman Complex,
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NATIONAL COMPANY LAW TRIBUNAL AHMEDABAD BENCH

J.M. PARIKH & ASSOCIATES
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B – 705, 7TH FLOOR, NIRMAN COMPLEX, OPP: HAVMOR RESTAURANT,
NAVRANGPURA, AHMEDABAD – 380 009. PHONE: 26563949, 26569093
E-mail: jvparikh@yahoo.com

Madhurkamal (Thaltej) Infrastructure Private Limited

Annexure 1

A. **Part I** : Short description of Freehold property and movable property of the company as at 30thApril 2023

- Freehold Property – NIL
- Movable Property:

Particulars	Amount (Rs.)
Current Assets	
Loans and Advances	3,60,89,000
Cash and Bank	25,984
Total	**3,61,14,984**

B. **Part II :** Short description of Leasehold property of the company as at 30th April 2023

- NIL

C. **PART III:** Short description of all stocks, shares, debenture, and other changes in action as at 30th April 2023

- NIL

J. M. PARIKH & ASSOCIATES * CHARTERED ACCOUNTANTS * Mem. No. 033811 AHMEDABAD

NATIONAL COMPANY LAW TRIBUNAL